



## CHAPTER xl

An Act to confer further powers upon the mayor, aldermen and burgesses of the borough of Poole, to make further provision for the improvement, health, local government and finances of the borough; and for other purposes.  
[3rd August, 1961.]

### WHEREAS—

(1) The borough of Poole (in this Act called “ the borough ”), in the county of Dorset, is a municipal borough under the government of the mayor, aldermen and burgesses of the borough (in this Act called “ the Corporation ”):

(2) It is expedient to make further provision with reference to streets and the improvement, health, local government and finances of the borough:

(3) It is expedient that the other provisions contained in this Act be enacted:

(4) The purposes of this Act cannot be effected without the authority of Parliament:

(5) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty, that it may be enacted and be it enacted by the Queen’s most Excellent Majesty, by



and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows (that is to say):—

## PART I

### PRELIMINARY

- Citation.** 1. This Act may be cited as the Poole Corporation Act, 1961.
- Division of Act into Parts.** 2. This Act is divided into Parts as follows:—
- Part I.—Preliminary.
  - Part II.—Lands.
  - Part III.—Streets.
  - Part IV.—Public health.
  - Part V.—Food.
  - Part VI.—Municipal property, cemeteries, etc.
  - Part VII.—Public order and public safety.
  - Part VIII.—Finance, rating and superannuation.
  - Part IX.—Miscellaneous.
  - Part X.—General.
- Incorporation of Lands Clauses Acts.** 3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act), except sections 127 to 132 and 150 and 151 of the Lands Clauses Consolidation Act, 1845, are hereby incorporated with, and form part of, this Act.
- Interpretation.** 4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 and 343 of the Public Health Act, 1936, have the same respective meanings, unless there be something in the subject or context repugnant to such construction.
- (2) In this Act unless the subject or context otherwise requires—
- “ the Act of 1919 ” means the Poole Corporation Act, 1919;
  - “ the Act of 1928 ” means the Poole Corporation Act, 1928;
  - “ the Act of 1933 ” means the Local Government Act, 1933;
  - “ the Act of 1936 ” means the Public Health Act, 1936;
  - “ the Act of 1937 ” means the Poole Corporation Act, 1937;
  - “ the Act of 1947 ” means the Town and Country Planning Act, 1947;
  - “ the Act of 1950 ” means the Public Utilities Street Works Act, 1950;
  - “ the Act of 1959 ” means the Highways Act, 1959;



- “the appointed day” has the meaning assigned to it by section 87 (The appointed day) of this Act ;
- “the borough” means the borough of Poole;
- “the commission” means the British Transport Commission;
- “contravention” includes a failure to comply and “contravene” shall be construed accordingly;
- “the Corporation” means the mayor, aldermen and burgesses of the borough;
- “the council” means the council of the borough;
- “daily fine” means a fine for each day on which an offence is continued after conviction;
- “enactment” includes an enactment in this Act or in any general or local Act and any order, byelaw, scheme or regulation for the time being in force within the borough;
- “the electricity board” means the Southern Electricity Board;
- “financial year” means a period of twelve months ending on the thirty-first day of March;
- “the gas board” means the Southern Gas Board;
- “the general rate fund” means the general rate fund of the borough;
- “the generating board” means the Central Electricity Generating Board;
- “house” includes a flat and any part of a house which is occupied or intended to be occupied as a separate dwelling;
- “the Lands Clauses Acts” means the Lands Clauses Acts as modified by the Land Compensation Act, 1961, and by this Act;
- “magistrates’ court” has the same meaning as in subsection (1) of section 124 of the Magistrates’ Courts Act, 1952;
- “the Minister” means the Minister of Housing and Local Government;
- “new street byelaws” has the meaning assigned to it by subsection (4) of section 157 of the Act of 1959;
- “open space” has the same meaning as in the Open Spaces Act, 1906;
- “street works” has the meaning assigned to that expression by section 213 of the Act of 1959;
- “telegraphic line” has the same meaning as in the Telegraph Act, 1878;



PART I  
—cont.

“the town clerk”, “the medical officer of health”, “the surveyor”, “the treasurer” and “the public health inspector” mean respectively the town clerk, the medical officer of health, the surveyor, the treasurer and any public health inspector of the borough;

“the water undertakers” means the Bournemouth and District Water Company or the Poole and East Dorset Water Board.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment including this Act.

## PART II

## LANDS

Development  
of land.

5.—(1) The Corporation may, with the consent of the Minister, lay out and develop any land acquired by them under section 7 (Extension of power to acquire land by agreement) of this Act and any other land for the time being belonging to them and not required for the purpose for which it was acquired, and may on any such land erect and maintain houses, flats, shops, offices, industrial buildings, garages, warehouses and other buildings and construct, sewer, drain, pave, channel and kerb streets:

Provided that nothing in this section shall apply to land acquired by the Corporation under section 38 or section 40 of the Act of 1947 or to land appropriated by them for the purposes for which land can be acquired under those sections.

(2) In this section “industrial building” includes a building used or designed for use for the carrying on of any process for, or incidental to, any of the following purposes, namely:—

- (a) the making of any article or part of any article; or
- (b) the altering, repairing, ornamenting, finishing, cleaning, washing, freezing, packing or canning or adapting for sale or breaking up or demolition of any article; or
- (c) without prejudice to the foregoing paragraphs, the getting, dressing or preparation for sale of minerals or the extraction or preparation for sale of oil or brine;

being a process carried on in the course of trade or business; and for the purposes of this definition “building” includes a part of a building and “article” means an article of any description including a ship or vessel.

Loans for  
erection, etc.,  
of buildings.

6.—(1) The Corporation may advance money to the purchaser or lessee of any land acquired from, or leased by, the Corporation for the purpose of enabling or assisting him to build on such land or to extend or improve any existing building thereon:



Provided that any such advance shall not exceed three-quarters of the amount which in the opinion of the Corporation will be the market value of the interest of the borrower in the land after the purpose of the loan has been effected.

(2) Before any advance is made under this section its repayment shall be secured to the satisfaction of the Corporation by a mortgage of the land and building in respect of which the advance is to be made or of the lessee's interest therein; and the instrument securing the advance shall—

- (a) fix the rate of interest to be paid being a rate not less than one quarter per centum in excess of the rate of interest which, at the date on which the terms of the advance are settled, was the rate fixed by the Treasury under section 1 of the Public Works Loans Act, 1897, in respect of loans to local authorities advanced out of the local loans fund and repayable over the same period as the advance;
- (b) fix the period within which the advance is to be repaid, being a period not exceeding thirty years from the date of the advance;
- (c) require the repayment to be made either by equal instalments of principal or by an annuity of principal and interest combined;
- (d) fix the intervals at which all payments on account of principal and interest are to be made, being intervals not exceeding half a year;
- (e) authorise the borrower, at any such days in the year as may be specified in the instrument, after one month's notice and on paying all sums due on account of interest, to repay the whole of the outstanding principal of the advance, or any part thereof being one hundred pounds or such less sum as may be provided in the said instrument or as the Corporation may be prepared to accept, or a multiple of one hundred pounds or of such less sum as aforesaid;
- (f) where the repayment is to be made by an annuity of principal and interest combined, provide for determining the amount by which either the annuity or the period during which the annuity is payable is to be reduced when a part of the advance is paid off otherwise than by way of an instalment of the annuity;
- (g) require the borrower either—
  - (i) to keep the building in respect of which the advance is made insured against fire to the satisfaction of the Corporation and to produce to the Corporation when required the receipts for the premiums paid in respect of the insurance; or



PART II  
—cont.

(ii) if the Corporation elect themselves to insure the said building against fire, to repay to the Corporation the amounts of any premiums paid by them from time to time in that behalf;

(h) require the borrower to keep the said building in good repair.

(3) Any person acting on behalf of the Corporation and authorised in writing by the town clerk shall have power at all reasonable times, after giving not less than seven days' notice, to enter any building in respect of which an advance has been made under this section for the purpose of ascertaining whether the conditions of this section and of the instrument aforesaid are being complied with.

(4) In this section "lessee" includes a person to whom the Corporation have agreed to grant a lease, and "lease" shall be construed accordingly.

Extension of  
power to  
acquire land  
by agreement.

7.—(1) The Corporation may acquire by agreement, whether by way of purchase, lease or exchange, any land, whether situate within or without the borough, for the purposes of any of their powers or duties or for the benefit, improvement or development of the borough, notwithstanding that the land is not immediately required:

Provided that the Corporation shall not under the powers of this section acquire any land situate without the borough except with the consent of the Minister.

(2) Land acquired under this section may, until it is appropriated for any purpose for which the Corporation are authorised, apart from this section, to acquire land, be used for the purpose of any of the functions of the Corporation; and until it is so appropriated all expenses incurred by them in respect of the land shall be payable out of the general rate fund.

(3) The Corporation shall not acquire land under section 158 of the Act of 1933.

Suspension of  
restrictive  
covenants.

8.—(1) If the Corporation—

(a) acquire land by agreement; or

(b) enter into an agreement to acquire land; or

(c) have acquired land by agreement before the passing of this Act;

and the land is required for a purpose for which the Corporation are for the time being or could under any enactment for the time being in force be authorised to acquire the land compulsorily but is affected by any restriction arising under covenant as to the user thereof or the building thereon (being a covenant which was subsisting immediately before the date of the acquisition of the



land by the Corporation) the council may, subject to the provisions of this section, by resolution suspend the operation of such restriction.

(2) The resolution shall describe by reference to a map the land to which it applies.

(3) The Corporation shall—

(a) in two successive weeks publish in one or more local newspapers circulating in the locality in which the land referred to in the resolution is situated a notice stating that the resolution has been passed, describing the land and naming a place within the locality where a copy of the resolution and map may be inspected and specifying the time (not being less than twenty-one days from the first publication of the notice) within which and the manner in which objections to the suspension of the operation of the restriction can be made;

(b) serve on every person who appears to them, after diligent inquiry, to be entitled to the benefit of the restriction to which the resolution relates a notice containing the like particulars to those specified in the preceding paragraph of this subsection; and

(c) affix to some conspicuous object or objects on the land to which the resolution relates a notice or notices containing the like particulars to those specified in paragraph (a) of this subsection.

(4) Any person claiming to be entitled to the benefit of the restriction may object to the suspension of the operation of the restriction by sending notice of his objection and of the grounds thereof to the Minister within the period specified in the notice and by sending a copy thereof to the Corporation.

(5) If any objection is duly made as aforesaid and is not withdrawn, the resolution shall be of no effect unless and until it is confirmed by the Minister and, before confirming the resolution, the Minister shall cause a public local inquiry to be held into the proposed suspension of the operation of the restriction and, after considering the report of the person who held the inquiry, may confirm the resolution.

(6) (a) If no objection is duly made under subsection (4) of this section, or if all objections so made are withdrawn, the operation of the restriction shall be suspended on and after the date of the expiration of the period specified in the notice or the date of the withdrawal of the objection or (if more than one) the last objection or the date on which the Corporation acquire the land (whichever is the latest).

(b) If objection is duly made as aforesaid and the Minister confirms the resolution, the operation of the restriction shall be



PART II  
—cont.

suspended on and after such date as the Minister shall determine not being earlier than the date on which the Corporation acquire the land.

(7) The Corporation shall pay compensation in accordance with the provisions of section 68 of the Lands Clauses Consolidation Act, 1845, to any person entitled to the benefit of a restriction the operation of which is suspended under the powers of this section who suffers loss in consequence thereof and the amount of such compensation shall be determined in case of dispute in accordance with Parts I and II of the Land Compensation Act, 1961.

(8) Any restriction the operation of which is suspended under the powers of this section shall be unenforceable so long as the Corporation are the owners of the land to which the restriction relates, and, if compensation is paid by the Corporation under subsection (7) of this section in respect of the suspension of the operation of a restriction relating to the building upon or use of land, that restriction shall remain unenforceable in respect of such building or use notwithstanding any subsequent conveyance or disposition of the land to any other person:

Provided that, if such compensation is paid on the basis that land may be used for a particular purpose, the restriction shall after any subsequent conveyance or disposition of the land remain unenforceable only so long as the land is used for that purpose.

(9) If the Corporation dispose of any land to which the restriction relates they shall in two successive weeks publish notice thereof in one or more local newspapers circulating in the locality in which the land is situated.

## PART III

## STREETS

*New streets*

Prohibition  
of building  
until street  
defined.

9.—(1) Where a plan and sections of a new street have been deposited with the Corporation in pursuance of new street byelaws and have been approved by them, no person shall without their consent begin to erect a building on land abutting on the street until he has defined by posts, or in some other suitable manner, the approved line, width and level of so much of the street as abuts on any land which will be occupied as the site of, or in connection with, the building.

(2) Where the approved width of a new street has been defined as aforesaid, no person shall begin to erect a building or structure nearer to the centre of the street than the line of the posts or other marks by which the width has been so defined.



(3) If any person contravenes the provisions of either of the foregoing subsections he shall be liable to a fine not exceeding twenty pounds; and the Corporation may—

(a) in the case of a contravention of subsection (1), define as aforesaid the approved line, width and level of the new street; and

(b) in the case of a contravention of subsection (2), remove the building or structure;

and in either case recover the expenses of so doing from that person.

**10.**—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may by notice prohibit the erection of any building on land abutting on the street until the carriageway of the street has been constructed, and the street has been sewered, in accordance with the said byelaws: Prohibition of building until street formed and sewered.

Provided that, where the plan shows that the street will exceed one hundred yards in length, the Corporation shall divide the street for the purpose of the notice into lengths not exceeding one hundred yards; and each such length shall for that purpose be treated as a separate street.

(2) Such a notice shall be given to the person by whom or on whose behalf the plan and sections were deposited; and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes the provisions of such a notice he shall be liable to a fine not exceeding twenty pounds; and the Corporation may construct the carriageway and works of sewerage which should have been constructed, and recover the expenses of so doing from that person.

(4) This section shall have effect subject to the provisions of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926, with respect to the avoidance of any such notice for want of registration as a local land charge.

(5) The execution of any works under the provisions of this section shall not relieve any person from any liability under any enactment relating to private street works for the time being in force in the borough.

**11.**—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may, for the purpose of securing adequate means of communication between the new street and any other street, whether existing or intended, by notice prohibit the erection or retention of any structure at either end of the new Access to new street.



PART III  
—cont.

street on land belonging, at the time of the deposit, to the owner of the land upon which the new street is proposed to be constructed or laid out:

Provided that no such notice shall affect any structure existing at the time of the deposit until both the new street and that other street have become highways maintainable at the public expense.

(2) Such a notice shall be given to the person by whom or on whose behalf the plan and sections were deposited; and the prohibition imposed thereby shall be binding on successive owners of the land to which it relates.

(3) If any person contravenes a notice under this section he shall be liable to a fine not exceeding twenty pounds; and the Corporation may remove the structure and recover the expenses of so doing from that person.

(4) This section shall have effect subject to the provisions of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926, with respect to the avoidance of any such notice for want of registration as a local land charge.

Rounding or  
splaying off  
corners at  
street  
junctions.

12.—(1) Where a plan and sections of a new street deposited with the Corporation in pursuance of new street byelaws are approved by them, they may, for the purposes of safety, by notice require that the corners formed at the junction of the new street with another street, whether existing or intended, but not being a trunk road, shall be rounded or splayed off in such manner as may be specified in the notice.

(2) Such a notice—

(a) shall be given to the person by whom or on whose behalf the plan and sections were deposited; and

(b) shall be binding on successive owners of the land to which it relates.

(3) The Corporation shall pay compensation to any person injuriously affected by the exercise of powers conferred by this section; and in default of agreement the amount thereof shall be determined by arbitration in accordance with the provisions of Parts I and II of the Land Compensation Act, 1961.

(4) If any person lays out or constructs a new street otherwise than in compliance with a notice in respect of the street under this section, he shall be liable to a fine not exceeding twenty pounds; and the Corporation may do such work as may be necessary to comply with the notice and recover the expenses of so doing from that person.



(5) This section shall have effect subject to the provisions of the Land Charges Act, 1925, as amended by the Law of Property (Amendment) Act, 1926, with respect to the avoidance of any such notice for want of registration as a local land charge.

PART III  
—cont.

*Improvement of streets*

13.—(1) Subject to the provisions of this section the Corporation shall have power, in any street vested in them, or on any land acquired by them for the purpose of the construction or improvement of any such street or for preventing the erection of buildings detrimental to the view from the street—

Trees, grass  
verges and  
gardens.

- (a) to plant trees or shrubs or place containers in which to grow trees or shrubs;
- (b) to attach containers for plants to posts or standards provided by the Corporation or, with the consent of the owner thereof, to any other posts or standards;
- (c) to lay out grass verges or gardens;
- (d) to provide guards or fences, and otherwise do anything expedient, for the maintenance or protection of such trees, shrubs, containers, grass verges or gardens;
- (e) to cut down any such tree or shrub, to remove any such container, guard or fence and to abolish any such grass verge or garden or enlarge or diminish the area thereof;
- (f) by notice to prohibit persons from entering upon, or causing or permitting horses, cattle or vehicles to enter upon, any grass verge laid out under this section and maintained in an ornamental condition or mown, or any garden so laid out.

(2) Any such notice as is referred to in paragraph (f) of the foregoing subsection shall be conspicuously posted on, or in proximity to, the grass verge or garden to which it relates; and if any person contravenes a notice so posted he shall be liable to a fine not exceeding five pounds.

(3) The powers conferred by this section shall not be exercised so as to hinder the reasonable use of the street by any person entitled to the use thereof or so as to be a nuisance or injurious to the owner or occupier of any land or premises abutting on the street.

(4) Section 82 of the Act of 1959 shall cease to apply to highways vested in the Corporation or to any such land as is referred to in subsection (1) of this section; and anything done by the Corporation under that section or under section 1 of the Roads Improvement Act, 1925, with respect to such highways or land before the passing of this Act shall be deemed to have been done under this section.



PART III  
—cont.

(5) Nothing in this section shall affect the duty of the Corporation to provide a footway or grass or other margins under section 67 or section 70 of the Act of 1959.

(6) (a) Where the Corporation carry out works under any enactment relating to private street works, they may, with the consent of the owners of premises fronting, adjoining or abutting on the part of the street in which the works are carried out, exercise the powers conferred by this section in that part; and the expenses incurred in so doing shall be deemed part of the expenses of carrying out the works.

(b) The reference in this subsection to the consent of the owners of the said premises is a reference to the consent of the majority of them where the rateable value of the premises owned by the persons consenting is greater than the rateable value of the rest of the said premises.

Enforcement  
of improve-  
ment line.

14.—(1) The Corporation may by notice require the owner of any building which, or any part of which, was beyond or in front of an improvement line prescribed under section 72 of the Act of 1959 or section 33 of the Public Health Act, 1925, at the time when the line was prescribed to demolish, set back or alter the said building within such reasonable period as may be prescribed by the notice, not being less than six months from the service of the notice, so that it shall not project beyond or in front of the improvement line.

(2) Where a building is demolished, set back or altered in compliance with a notice under this section, the Corporation shall pay compensation to any owner or tenant thereof for any damage or loss sustained by him in consequence of the compliance; and the amount of the compensation shall in default of agreement be determined by arbitration in accordance with the provisions of Parts I and II of the Land Compensation Act, 1961.

(3) In determining the amount of the compensation payable under this section to the owner or tenant of a building in a case where—

(a) he has an interest in land abutting on so much of the improvement line as immediately before the service of the said notice intersected or abutted on the building or land occupied in connection therewith; and

(b) the value of his said interest is enhanced by reason of the widening or improvement of the street;

the amount of the enhancement in value shall be set off against the compensation.

(4) If any person fails to comply with a notice under this section he shall be liable to a fine not exceeding twenty pounds;



and the Corporation may do all such things as may be necessary to comply with the notice and recover the cost of so doing from that person.

PART III  
—cont.

(5) In this section “ building ” includes a structure.

*Protection and repair of streets*

15. Section 36 (Hoardings and similar structures) of the Act of 1928 shall have effect as if for the words “ fence hoarding or other similar structure ” there were substituted the words “ wall (not being a wall forming part of a permanent building) fence hoarding or similar erection ” and as if the following subsection were added thereto:—

Amendment  
of section 36  
of Act of  
1928.

“ (4) The provisions of this section shall not apply to any advertisement to which regulations made under the powers of section 31 of the Act of 1947 apply.”

16.—(1) In this section “ retaining wall ” means a wall which—

Retaining  
walls.

(a) serves, or is intended to serve, as a support for earth or other material on one side only; and

(b) does not form part of a permanent building;

and this section applies to any length of a retaining wall, being a length—

(i) any cross-section whereof is wholly or partly within twelve feet of a street in the borough; and

(ii) which is at any point of a greater height than six feet above the level of the ground at the boundary of the street nearest that point.

(2) After the passing of this Act no length of a retaining wall to which this section applies shall be erected otherwise than in accordance with plans, sections and specifications approved by the Corporation; and if any person erects any such length of a retaining wall in contravention of this subsection he shall be liable to a fine not exceeding five pounds.

(3) Any person aggrieved by the refusal of the Corporation to approve any plans, sections and specifications submitted to them in pursuance of the last foregoing subsection may appeal to a magistrates' court.

(4) If any length of a retaining wall to which this section applies—

(a) is in such disrepair as to be liable to endanger persons using the street; or

(b) having been erected before the passing of this Act or erected in contravention of subsection (2) of this section, is so constructed as to be liable as aforesaid;



PART III  
—cont.

the Corporation may by notice to the owner or occupier require him to execute such work as may be necessary to prevent its being liable as aforesaid; and the provisions of section 290 of the Act of 1936 shall apply in relation to such a notice as they apply in relation to the notices mentioned in subsection (1) of that section.

(5) The provisions of this section shall not apply to a retaining wall erected on land belonging to any railway undertakers so long as that land is used by those undertakers primarily for the purposes of their railway undertaking.

Awnings over  
footways.

17.—(1) If a person erects, or permits to be erected, over the footway of a street in the borough, being a highway maintainable at the public expense, an awning which—

(a) projects over any part of the footway which is less than two feet from the carriageway; or

(b) obscures a traffic sign from the view of persons driving or riding vehicles on the carriageway;

he shall be liable to a fine not exceeding five pounds.

An awning that can be folded up or rolled up without being dismantled shall be treated for the purposes of this subsection as being in its extended position.

(2) If an awning over such a footway is dangerous or inconvenient to the public, the Corporation may by notice require the owner or occupier of the premises to which the awning is appurtenant to carry out such work as may be necessary to remove the danger or inconvenience.

(3) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under the last foregoing subsection as they apply in relation to the notices mentioned in subsection (1) of that section.

(4) In this section “awning” includes a blind, shade or other covering.

Mixing of  
mortar, etc.,  
in streets.

18.—(1) No person shall mix mortar, cement, plaster, or any like substance in any street in the borough maintainable at the public expense or in any street therein constructed under the powers in that behalf contained in the Act of 1947, the Housing Act, 1957, the Act of 1959 or this Act or in any part of a private street being a part that drains into a gully, drain or sewer maintainable at the public expense, except upon such board or in such receptacle as will protect the street from such mortar, cement, plaster or substance and will prevent the same from being washed into any gully, drain or sewer:



Provided that this section shall not apply to the mixing in any street of any substance for the purposes of making up, maintaining, reinstating, repairing, altering or improving such street or any bridge over or under the same.

PART III  
—cont.

(2) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding forty shillings.

### *Miscellaneous*

19.—(1) The Corporation may, on the occasion of any public festivity, cause flag-poles and pylons to be erected in any street in the borough for the purpose of displaying decorations, and may for that purpose provide sockets or slots in, or under the surface of, any such street. Decorations  
in streets.

(2) If any person wilfully removes or damages a flag-pole, pylon, socket or slot erected or provided under this section, he shall be liable to a fine not exceeding five pounds.

(3) The Corporation shall not exercise the powers of this section in a trunk road without the consent of the Minister of Transport or in any street belonging to or repairable by the commission without the consent of the commission.

20.—(1) Where in any highway in the borough any danger or obstruction is caused or is likely to be caused to persons or vehicles using such highway by reason of any trench or opening therein or the erection thereon or thereover of any hoarding or scaffolding or of the presence thereon or therein of any defective gully, grid, grating, manhole or other cover, step, area, grate or other fitting or structure of whatsoever character or description (all of which are in this section included in the expression “defective fitting or structure”), the surveyor may cause proper boards or fences to be put up for the protection of pedestrians or vehicles and may cause such trench, opening, hoarding or scaffolding or such boards or fences to be lighted during the time between half an hour after sunset and half an hour before sunrise. Fencing and  
lighting of  
obstructions  
in highways.

(2) Any expenses reasonably incurred by the Corporation in erecting, maintaining or removing any such board or fence or in lighting any such trench, opening, hoarding, scaffolding, board or fence shall be recoverable from the owner of the hoarding or scaffolding or of the defective fitting or structure or from the person or persons responsible for the making of the trench or opening or the erection of the hoarding or scaffolding on or over the highway or for the condition of the defective fitting or structure.

(3) The provisions of this section shall not apply in cases where there is a duty to secure the observance of the requirements of paragraphs (a) to (e) of subsection (1) of section 8 of the Act of 1950.



## PART III

—cont.

Illumination  
of street  
names.

21.—(1) Subject to the provisions of this section, the Corporation may illuminate any inscription which has been set up of the name of any street in the borough:

Provided that the Corporation shall not continue any illumination under this section which in the opinion of the commission hinders or is likely to hinder the ready interpretation of any railway signal or is likely to render hazardous the use of any railway.

(2) The Corporation may for the purposes of this section affix lamps, brackets, pipes, electric lines or other apparatus (hereafter in this section referred to as “attachments”) to a building with the consent of the owner of the building:

Provided that where in the opinion of the Corporation any consent required under this subsection is unreasonably withheld they may apply to a magistrates’ court who may either allow the affixing of the attachments subject to such conditions (if any) as to rent or otherwise as the magistrates’ court thinks fit or disallow the affixing of the attachments.

(3) Any electrical apparatus provided in pursuance of the powers of this section shall be so constructed, maintained and used as to prevent interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(4) Except with the consent of the Minister of Works the Corporation shall not under this section affix any attachments to a building which is for the time being included in a list published under section 12 of the Ancient Monuments Consolidation and Amendment Act, 1913.

Numbers of  
houses.

22. As from the appointed day section 65 of the Towns Improvement Clauses Act, 1847 (which requires the occupiers of houses and other buildings in the streets to mark their houses with numbers), shall have effect in its application to the borough, as if after the words “with such numbers as the commissioners approve of” there were inserted the words “and in such positions as to be easily visible from the street,” and as if after the words “a number approved of by the commissioners” there were inserted the words “and in such position as to be easily visible from the street”.

Road  
cleansing  
vehicles.

23. Between one hour after sunrise and one hour before sunset the provisions of any order under the Road Traffic Act, 1960, prohibiting the driving of vehicles on any specified road in the borough otherwise than in a specified direction and any provisions



applicable to the direction to be followed by vehicles using roads provided with dual carriageways shall not apply to any mechanically propelled and operated road cleansing vehicle provided by the Corporation when engaged in the cleansing of any street.

PART III  
—cont.

24.—(1) Where in pursuance of the Housing Act, 1957, any grass verge, garden or space is provided by the Corporation and maintained in an ornamental condition or mown, they may by notice prohibit any person from—

Verges, etc.,  
of housing  
estates.

- (a) causing or permitting vehicles to enter upon any such grass verge, garden or space; or
- (b) entering upon any such garden.

(2) Any such notice as is referred to in the foregoing subsection shall be conspicuously posted on or in proximity to the grass verge, garden or space to which it relates and any person who contravenes a notice so posted shall be liable to a fine not exceeding five pounds.

(3) The powers of this section shall not be exercisable in relation to any grass verge, garden or space which forms part of a highway maintainable at the public expense.

(4) Nothing in this section shall restrict, prevent, interfere with, or prejudice the exercise by any person of any statutory right or power to enter upon any lands.

25.—(1) Where any tree or structure or any part thereof falls on or across any street in the borough, the Corporation may remove the same and recover the reasonable cost of so doing from the owner thereof or, if such owner was not in beneficial occupation of the land upon which such tree or structure or any part thereof was situated, from the occupier thereof.

Removal of  
trees, etc.,  
from streets.

(2) The provisions of section 276 of the Act of 1936 (relating to the sale of certain materials) as applied by this Act shall for the purposes of this section have effect as if the expression “materials” included timber.

(3) The Corporation shall not exercise the powers of this section in any street belonging to or repairable by the commission without the consent of the commission.

26.—(1) No person (other than a person selling, offering or exposing for sale or depositing for sale any food, goods, provisions, articles or things at any market or fair for which a toll, stallage or rent is payable) shall provide, erect or place and use any shed, hut, shelter, booth, shop, stall or other erection whether on wheels

Sale of food  
and articles  
on verges,  
etc.



PART III  
—cont.

or not or any vehicle or any container used with or without a stall on the verge of any road to which this section applies or on any common land, unenclosed moor land or other unenclosed land of whatsoever description adjacent to and within fifteen yards of a road to which this section applies, for the purpose of selling, offering, depositing or exposing for sale any food, goods, provisions, articles or things whatsoever other than newspapers.

(2) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding forty shillings and to a daily fine not exceeding forty shillings.

(3) (a) This section applies to—

- (i) such parts of the classified roads A 35, A 341 and A 349 as are situate within the borough; and
- (ii) any other road or part of a road in the borough to which the Minister of Transport may by order on the application of the Corporation apply this section.

(b) Before making application for an order under this subsection the Corporation shall publish once at least in each of two successive weeks in a local newspaper circulating in the borough a notice stating the general effect of the intended order and stating that within a period specified in the notice (not being less than twenty-eight days from the first publication of the notice) any person may object to the application, by sending notice of his objection and of the grounds thereof to the Minister of Transport and by sending a copy thereof to the town clerk.

(c) If, before the expiration of the period specified in the notice, any objection to the application is received by the Minister of Transport from any person appearing to him to be affected, the said Minister shall, before making the order, cause a local inquiry to be held and consider the report of the person who held the inquiry.

(4) Nothing in this section shall apply to—

- (a) any shed, hut, shelter, booth, shop, stall or other erection or any vehicle provided, erected or placed on private property by or with the consent of the owner of such property;
- (b) any building erected or work constructed with the consent of the Minister of Agriculture, Fisheries and Food in pursuance of section 194 of the Law of Property Act, 1925, or of any other statutory provision or any scheme made pursuant to a statute; or
- (c) the sale of food, goods, provisions, articles or things from a vehicle when in use solely for the purpose of



itinerant trading with the occupants of premises adjoining any verge or common land, moor land or other land to which this section applies.

PART III  
—cont.

(5) In this section—

- (a) the expression “container” includes any basket, pail, tray, package or receptacle of any kind whether open or closed;
- (b) the expression “private property” does not include common land or unenclosed moor land;
- (c) the expression “vehicle” means a vehicle of any description drawn or propelled along roads whether by animal or mechanical power.

27.—(1) In this Part of this Act—

Interpretation  
of Part III.

“classified road” has the same meaning as in the Act of 1959;

“new street byelaws” has the meaning assigned to it by subsection (4) of section 157 of the Act of 1959;

“structure” means a wall, fence, hoarding or similar erection; but for the purpose of this definition “wall” does not include a wall forming part of a permanent building.

(2) For the purposes of this Part of this Act the erection of a building shall be deemed to have begun at the time when the clearing of the site or the excavation for the foundations thereof, whichever is the earlier, began.

#### PART IV

##### PUBLIC HEALTH

28.—(1) The Corporation may by notice require the owner or occupier of any premises or place in the borough at which any exhibition, performance, amusement, game or sport to which the public are or will be admitted is held, given or provided or is about to be held, given or provided, to provide to the reasonable satisfaction of the Corporation and thereafter to the like satisfaction maintain during the continuance of such exhibition, performance, amusement, game or sport in a suitable position such numbers of sanitary conveniences for the use of the public resorting to such premises or place as may be reasonable.

Provision of  
sanitary  
conveniences  
at places of  
public  
exhibition,  
etc.

(2) Any person aggrieved by a requirement made under subsection (1) of this section may appeal to a magistrates' court.

(3) If any person fails to comply with a notice served on him under this section within such reasonable period, not being less than one month after the date of the service of the notice as may be specified therein, and the public are thereafter admitted to the premises or place for any such exhibition, performance, amusement, game or sport, he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings:



PART IV  
—cont.

Provided that—

- (a) in any proceedings under this subsection it shall be open to the defendant to question the reasonableness of the Corporation's requirements or of their decision to address their notice to him and not to the occupier or, as the case may be, the owner of the premises; and
- (b) no proceedings shall be taken against a person who has failed to comply with a notice served on him under this section, if on the date when the public are admitted to the premises or place in respect of which the notice was served, he has ceased to be the owner or occupier thereof.

(4) (a) Section 89 of the Act of 1936 shall in its application to the borough have effect as if for the words "refreshment-house or place of public entertainment" in subsection (1) of that section there were substituted the words "or refreshment-house".

(b) Nothing in this section shall apply to premises to which the said section 89, as amended by this subsection, applies by reason only of the holding thereon of any exhibition, performance, amusement, game or sport to which the public are admitted.

(5) The provisions of this section shall not apply to any premises or place in respect of which byelaws for preserving sanitary conditions may be made by the Corporation under an enactment contained in an Act of the present session authorising the making of byelaws with respect to pleasure fairs and roller-skating rinks.

Power to  
order  
alteration of  
domestic  
chimneys.

29.—(1) If a magistrates' court is satisfied upon a complaint by the Corporation that any smoke, gas or vapour from a chimney, flue or pipe of a building or structure forming part of, or within the curtilage of, a house in the borough is prejudicial to the health of any of the inhabitants of the borough or a nuisance, the court may make an order requiring the owner of the chimney, flue or pipe, within such time as may be specified in the order—

- (a) to cause it to be raised to a height so specified; or
- (b) to cause such other means for remedying the cause of complaint to be adopted as the court thinks fit:

Provided that the court shall not make an order under this section unless it is satisfied that the work to be done in pursuance of the order need not involve an expenditure exceeding fifty pounds.

(2) If any person fails to comply with an order made under this section he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

Supply of  
water to  
premises  
where supply  
cut off.

30.—(1) Where an occupied house in the borough has ceased to be supplied with water sufficient for the domestic purposes of the occupants by reason of the absence or defective state of a supply pipe (not being a supply pipe which is laid in a highway) or the



cutting off of the supply of water through that pipe or the absence or defective state of any fittings, the Corporation may, without prejudice to any action or proceedings which they may take under any other enactment, repair or renew the pipe or execute such works and provide or repair such fittings and do such other things (including the making of any payment) as they may consider necessary to secure that the supply of water to the house is restored, and may recover the expenses reasonably incurred by them in so doing from the owner of the house.

(2) In any proceedings for the recovery of expenses under the preceding subsection the court may inquire whether the whole or any part of the expenses should instead of being borne by the person from whom they are sought to be recovered be borne by the occupier of the premises in respect of which they were incurred and the court may make such order as appears to it to be just in the circumstances of the case with respect to the person (being either the person from whom the expenses are sought to be recovered or such an occupier as aforesaid) by whom the expenses are to be borne or as to the apportionment between any such persons of their liability to bear the expenses:

Provided that the court shall not under this subsection order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings, unless the court is satisfied that that other person at the instance of the defendant has had due notice of the proceedings and an opportunity of being heard.

(3) (a) Where two or more houses in the occupation of different persons being houses supplied with water by a common pipe belonging to the owners or occupiers of those houses or some of them, have ceased to be supplied with water sufficient for the domestic purposes of the occupants by reason of the defective state of the supply pipe (not being a supply pipe which is laid in a highway) or the cutting off of the supply of water through that pipe, the Corporation may give notice to the owners requiring them within such reasonable period as may be stated in the notice to repair or renew the pipe or execute any other works as may be necessary to secure that the supply of water to any such houses is restored:

Provided that if after reasonable inquiry the names and addresses of the owners cannot be ascertained, the Corporation may, if they think fit, repair or renew the pipe or execute such other works as aforesaid and may recover any expenses reasonably incurred by them in so doing from the owners or occupiers of the houses in such proportions as may be determined by the Corporation or in case of dispute by a magistrates' court.

(b) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this subsection as they apply in relation to the notices mentioned in subsection (1) of that section.



PART IV  
—cont.

(c) Nothing done under this subsection shall prejudice or affect the rights and obligations as between themselves of the owner and the occupier of any house.

(4) The powers and functions of the Corporation under the foregoing provisions of this section may be exercised by the medical officer of health or the public health inspector.

(5) The Corporation may if they think fit themselves bear the whole or any part of any expenses recoverable by the Corporation under this section.

(6) The provisions of this section shall not without the consent of the water undertakers (which consent shall not be unreasonably withheld) apply to the restoration by the Corporation of the supply of water to an occupied house where such supply has been cut off by the water undertakers in exercise of their statutory powers unless the Corporation pay to the water undertakers any sum due to them in respect of the supply of water to that house.

Caravans on  
certain lands.

31. Section 23 of the Caravan Sites and Control of Development Act, 1960, and the Second Schedule to that Act shall apply to any unenclosed lands forming part of Alderney Heath, Broadstone Heath, Canford Heath, Knighton Heath or Mannings Heath within the borough as if those lands formed part of a common and as if the council were a rural district council.

Byelaws as to  
houseboats.

32.—(1) In this section the expression “houseboat” means any boat, barge or vessel (whether or not the same shall be floating at any stage of the tide) which is used for human habitation but does not include—

- (a) any ship registered under the Merchant Shipping Act, 1894, or any boat, barge or vessel bona fide used for navigation; or
- (b) any boat, barge or vessel which is not used for human habitation for more than fifty-six consecutive days in any period of twelve months.

(2) The Corporation as port health authority may make byelaws with respect to houseboats within the port health district of Poole—

- (a) for promoting cleanliness in, and ensuring the habitable condition of, houseboats;
- (b) for preventing overcrowding of houseboats;
- (c) for securing the adequate ventilation and lighting of, and an adequate water supply to, houseboats;
- (d) for requiring the provision and maintenance of—
  - (i) adequate sanitary and washing facilities; and
  - (ii) adequate accommodation for the storage, preparation and cooking of food; in houseboats;
- (e) for securing that proper arrangements are made for the storage and disposal of refuse from houseboats and the disposal of the contents of closets in houseboats;



PART IV  
—cont.

- (f) for ensuring that houseboats are maintained in a water-tight and weatherproof condition;
- (g) for securing the safety of persons residing in houseboats;
- (h) for prohibiting mooring, placing or keeping of houseboats in the proximity of tanks used for the bulk storage of petroleum spirit (as defined in the Petroleum (Consolidation) Act, 1928).

33.—(1) As from the appointed day no person shall cause or permit to be discharged in the borough so as to be prejudicial to health or a nuisance or so as to interfere seriously with the visibility on a highway—

Discharge of  
steam and  
waste gas.

- (a) any steam or waste gas ejected from a stationary engine or the boilers or condensers thereof; or
- (b) any condensing water above a temperature of one hundred and ten degrees Fahrenheit so ejected; or
- (c) any spent or ejected steam arising or produced in the course of a trade or business.

(2) If any person contravenes the provisions of the foregoing subsection he shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

(3) Nothing in this section shall apply to steam, gas or water discharged from a railway locomotive.

34.—(1) No person shall deposit in a dustbin or other receptacle for the removal of house refuse by or on behalf of the Corporation—

Restriction  
on use of  
dustbins.

- (a) soot; or
- (b) refuse of a liquid or partially liquid character unless in a closed container.

(2) If any person contravenes the provisions of this section, he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding twenty shillings.

PART V  
FOOD

35. In this Part of this Act the following expressions have the meanings hereby respectively assigned to them:—

Interpretation  
of this Part  
of Act.

“animal feeding meat” means any flesh of cattle, horses, asses, mules, swine, sheep or goats which is sold or intended for sale for consumption by any animal and includes any such flesh, whether cooked or uncooked, and whether alone or accompanied by or mixed with any other substance, but does not include any residuals which have been sterilised in a manner not less effective than that prescribed by any regulations for the time being in force under the Food and Drugs Act, 1955, resulting from the refining or processing of any such flesh at premises to which the provisions of sections 107 and 108 of the Act of 1936 are applicable;



PART V  
—cont.

- “ authorised officer ” means any officer who is, by virtue of the Food and Drugs Act, 1955, an authorised officer for the purposes of the examination and seizure of meat under the provisions of Part I of that Act relating to food unfit for human consumption;
- “ flesh ” includes any part of an animal;
- “ slaughterhouse ” has the same meaning as in section 135 of the Food and Drugs Act, 1955;
- “ knacker’s yard ” means any premises used in connection with the business of slaughtering, flaying or cutting up animals the flesh of which is not intended for human consumption;
- “ premises ” does not include a knacker’s yard or slaughterhouse;
- “ Public Health (Meat) Regulations ” means the Public Health (Meat) Regulations, 1924 to 1952, as continued in force and having effect by virtue of subsection (2) of section 136 of and the Twelfth Schedule to the Food and Drugs Act, 1955, or as amended under section 13 of that Act and includes any regulations made under the said section 13 which replace those regulations.

Slaughter of  
animals  
otherwise than  
for human  
consumption.

36.—(1) As from the appointed day the following provisions shall have effect in the borough with respect to the slaughter of any of the following animals, namely, horses, cattle, sheep, goats or pigs, where the animal is slaughtered owing to emaciation or disease, and the Public Health (Meat) Regulations do not have effect in relation to the slaughtering by reason of its not being for human consumption.

(2) The owner of any such animal shall comply with the following provisions:—

(a) except in the cases mentioned in paragraph (b) of this subsection, he shall not slaughter it, or cause it to be slaughtered, until he has given notice to an authorised officer of the intended slaughter of it, and not less than twenty-four hours from the giving of the notice have expired;

(b) if, by reason of accidental injury, illness or exposure to infection, it is necessary to slaughter it either before the expiration of twenty-four hours from the giving of such a notice as is required by paragraph (a) of this subsection, or without giving such a notice, he may so slaughter it, or cause it to be so slaughtered; but—

(i) if the slaughter is before the expiration of the said twenty-four hours, he shall retain the carcase intact until the expiration of that period, or until its disposal is approved by an authorised officer, whichever first occurs; or

(ii) if the slaughter is without giving such a notice, he shall give notice thereof to an authorised officer as



soon as practicable thereafter, and retain the carcase intact until the expiration of twenty-four hours from the giving of that notice, or until its disposal is approved by an authorised officer, whichever first occurs;

- (c) he shall, on the application of an authorised officer made within two weeks from the date of its slaughter, furnish such information within his knowledge as that officer may reasonably require for the purpose of enabling him to trace the disposal of the carcase or any part thereof.

(3) Notwithstanding the requirement imposed by paragraph (b) of subsection (2) of this section on the owner of an animal to retain the carcase intact until the expiration of a period therein mentioned, he may permit a veterinary surgeon or veterinary practitioner—

- (a) to send, at any time during that period, to a laboratory a specimen taken from the carcase or the whole carcase; or

- (b) to take such a specimen, or the whole carcase, into his possession at any time during that period, and to retain it;

but, where the owner gives such a permission and it is acted upon, he shall give to an authorised officer notice of the action taken within twenty-four hours from the time when it is taken.

(4) Notwithstanding the requirement imposed by paragraph (b) of subsection (2) of this section on the owner of an animal to retain the carcase intact until the expiration of a period therein mentioned, if the slaughter was in a knacker's yard, or the carcase is moved to a knacker's yard immediately after the slaughter, the owner may take, or cause to be taken, from the carcase during that period any part or organ which, in the opinion of the owner, it is necessary so to take therefrom in order to prevent or minimise risk of nuisance or risk of deterioration of the carcase, but if he does so the owner shall during that period retain every part or organ so taken on the premises on which it was so taken, and in such manner as may be requisite for showing to the reasonable satisfaction of an authorised officer from what carcase it was taken.

(5) If the owner of an animal—

- (a) contravenes this section or fails to discharge an obligation thereby imposed on him; or  
(b) furnishes in response to an application under paragraph (c) of subsection (2) thereof information which he knows to be false;

he shall be liable to a fine not exceeding twenty pounds.

(6) Nothing in this section shall affect the operation of the Diseases of Animals Act, 1950, or of any order licence or act



PART V  
—cont.

of the Minister of Agriculture, Fisheries and Food made, granted or done thereunder, or having effect by virtue of section 89 thereof.

(7) As from the appointed day section 77 (Notice of slaughter of animal unfit for human food) of the Act of 1928 is hereby repealed.

Byelaws as  
to sale, etc.,  
of animal  
feeding meat.

37.—(1) The Corporation may make byelaws—

(a) for regulating the construction and equipment of any premises in the borough at or from which animal feeding meat is—

(i) prepared for sale;

(ii) sold or offered or exposed for sale; or

(iii) deposited for the purpose of sale or preparation for sale;

(b) for regulating the cleanliness and sanitary condition of such premises and the provision of suitable storage therein for animal feeding meat.

(2) Nothing in any byelaw made under subsection (1) of this section shall extend or apply to any premises used for the sale or offer or exposure for sale of animal feeding meat—

(a) in tins or other containers effectually sealed and having attached thereto a notice of adequate size, distinctly and legibly printed and conspicuously visible to the effect that the animal feeding meat is for animal consumption only;

(b) in the form of dog biscuits or other articles of a similar nature;

which premises are not otherwise used for any purpose in connection with the preparation, storage or sale of animal feeding meat.

(3) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of any byelaws made under this section shall be provisions which it is the duty of the Corporation to enforce.

(4) Nothing in this section shall affect the operation of the Diseases of Animals Act, 1950, or of any order, licence or act of any Minister made, granted or done thereunder or having effect by virtue of subsection (2) of section 89 thereof.

Registration  
of premises  
used in  
connection  
with sale,  
etc., of  
animal  
feeding meat.

38.—(1) (a) As from the appointed day and subject to the provisions of this subsection, no premises in the borough shall be used for the sale or offer or exposure for sale or deposit or consignment for sale or preparation for sale of animal feeding meat, unless such premises are registered under this section for that purpose by the Corporation, and a person who uses any premises in contravention of the provisions of this subsection shall be liable, in the case of a first offence, to a fine not exceeding



ten pounds and, in the case of a subsequent offence, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding two months or to both such a fine and such imprisonment.

(b) Subject to the following provisions of this subsection the Corporation shall, on the application of the occupier of or of a person proposing to occupy any premises, register those premises for the purposes of this subsection.

(c) If it appears to the Corporation that any premises for the registration of which application has been made under this subsection or which are registered under this subsection do not satisfy the requirements of any byelaws made under the last foregoing section, or are otherwise unsuitable for use for the purpose for which they are proposed to be used or are being used, the Corporation shall serve on the applicant for registration or (as the case may be) on the occupier for the time being of the premises a notice stating the place and time not being less than twenty-one days after the date of the service of the notice at which they propose to take the matter into consideration and informing him that he may attend before a committee of the council with any witnesses whom he desires to call at the place and time mentioned to show cause why the Corporation should not for reasons specified in the notice refuse the application or (as the case may be) cancel the registration of the premises.

(d) If a person on whom a notice is served under the last foregoing paragraph fails to show cause to the satisfaction of the Corporation, they may refuse the application or (as the case may be) cancel the registration of the premises and shall forthwith give notice to him of their decision in the matter and shall, if so required by him, within fourteen days of their decision give to him within forty-eight hours a statement of the grounds on which it is based.

(e) A person aggrieved by the decision of the Corporation under this subsection to refuse to register any premises or to cancel the registration of any premises may appeal to a magistrates' court.

(f) Upon any change in the occupation of premises registered under this section, the incoming occupier shall if he intends to use them for the purpose for which they are registered forthwith give notice of the change to the Corporation who shall thereupon make any necessary alteration in their register. If a person required to give a notice under this paragraph fails to do so he shall be liable to a fine not exceeding five pounds.

(2) Nothing in subsection (1) of this section shall extend or apply to any premises used for the sale or offer or exposure for sale of animal feeding meat—

(a) in tins or other containers, effectually sealed and having attached thereto a notice of adequate size, distinctly



PART V  
—cont.

and legibly printed and conspicuously visible to the effect that the animal feeding meat is for animal consumption only;

(b) in the form of dog biscuits or other articles of a similar nature;

which premises are not otherwise used for any purpose in connection with the preparation, storage or sale of animal feeding meat.

(3) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

## PART VI

## MUNICIPAL PROPERTY, CEMETERIES, ETC.

## Golf courses.

39.—(1) The Corporation may provide a golf course, and for that purpose may by agreement acquire, whether by way of purchase, lease or exchange, land, whether situated within or without the borough.

(2) The Corporation may provide such buildings, and execute such works, as may be necessary or expedient in connection with the provision of a golf course under this section; and references in the following provisions of this section to a golf course provided under this section shall include references to any buildings provided, or works executed, under this subsection, and to anything with which any such golf course or building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may either—

(a) themselves manage a golf course provided under this section, making such reasonable charges for the use thereof, or admission thereto, as they think fit; or

(b) let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit.

(4) The Corporation may—

(a) at a golf course provided under this section, provide and sell refreshments of all kinds, subject to the provisions of all enactments relating thereto;

(b) enter into any agreement or arrangement for the provision and sale of refreshments as aforesaid;

(c) grant, upon such terms and conditions, and for such period, as they think fit, the right so to provide and sell refreshments;



(d) by themselves, or any person appointed by them in that behalf, apply for, and hold, licences for the sale of intoxicating liquor or tobacco at any such golf course.

PART VI  
—cont.

(5) The Corporation may make byelaws for regulating the use of golf courses provided under this section, whether within or without the borough, and the conduct of persons using them or resorting thereto.

40.—(1) The Corporation may on land for the time being belonging to them provide a zoological garden or botanical garden or a zoological garden and a botanical garden, and for that purpose may by agreement acquire, whether by way of purchase, lease or exchange, land, whether situated within or without the borough.

Provision of  
zoological and  
botanical  
gardens.

(2) The Corporation may provide such buildings and execute such works as may be necessary or expedient in connection with the provision of any zoological garden or botanical garden under this section and references in the following provisions of this section to a zoological garden or botanical garden so provided shall include references to any buildings provided or works executed under this subsection and to anything with which any such building is equipped by virtue of section 271 of the Act of 1936 as applied by this Act.

(3) The Corporation may purchase or acquire zoological and botanical specimens and exhibits.

(4) The Corporation may either—

- (a) themselves manage any zoological garden or botanical garden provided under this section making such reasonable charges for admission thereto as they think fit; or
- (b) let it or any part thereof for such consideration and on such terms and conditions as they think fit.

(5) For the purposes aforesaid the Corporation may enclose any part of any park or pleasure ground provided by them, and may exclude the public from the part so enclosed:

Provided that nothing in this subsection shall empower the Corporation to enclose more than one-hundredth of the total area of all the parks and pleasure grounds provided by them.

41.—(1) The Corporation may agree with any person, in consideration of the payment of a sum by him, to maintain, for a period fixed by the agreement, a grave or tombstone in a burial ground or crematorium provided by the Corporation.

Agreements to  
maintain  
graves and  
tombstones.



PART VI  
—cont.

(2) In this section—

“ burial ground ” includes a cemetery;

“ grave ” includes a grave space, niche or urn;

“ tombstone ” includes a monument or other memorial of a deceased person.

Extension of  
power to  
maintain  
burial grounds.

42.—(1) The powers of the Corporation in relation to a burial ground maintainable by them shall include power—

(a) to put, and keep, in order any tombstone or memorial therein;

(b) to level any grave therein;

(c) to remove any tombstone or memorial on any grave therein, or any railings surrounding any grave therein, or any such tombstone or memorial;

(d) to alter the position of any such tombstone, memorial or railings.

(2) Before exercising a power conferred by paragraph (b), (c) or (d) of the foregoing subsection the Corporation shall—

(a) publish a notice of their intention to do so once in each of two successive weeks in a local newspaper circulating in the borough, with an interval between the dates of publication of not less than six clear days;

(b) display a notice thereof in a conspicuous position in the burial ground; and

(c) serve a notice thereof upon the owner of the grave, or upon a relative of a deceased person whose remains are interred therein, if after reasonable inquiry the name and address of the owner, or of a relative of such a person, can be ascertained.

(3) Each of the notices shall—

(a) contain brief particulars of the Corporation's proposals, and specify an address at which full particulars of the proposals can be obtained, unless the brief particulars are of proposals incapable of further statement;

(b) specify the date on which it is intended that the Corporation will begin to carry out the proposals, which shall be not earlier than the fourteenth day after the date of the later of the two publications, or than the twenty-first



day after the date on which the notice in the burial ground is first displayed, or, where notice is required to be served, than the twenty-first day after the date of service; and

(c) state the effect of the next following subsection.

(4) If notice of objection to a proposal, and of the ground thereof, is given to the Corporation before the date specified under paragraph (b) of the last foregoing subsection, that proposal shall not be carried out without the consent of the Minister, unless the notice is withdrawn.

(5) The Corporation may put to such use as they think appropriate, or destroy, any tombstone, memorial or railings removed under this section, unless it or they is or are claimed within three months after the date of the earlier of the two publications of the notice required by paragraph (a) of subsection (2) of this section, or, where notice has been served under paragraph (c) thereof, after the date of such service, whichever is the later.

(6) Where a tombstone is removed under this section, the Corporation may erect at their own expense, in substitution, a tombstone of a value not exceeding twenty-five pounds.

(7) The Corporation shall cause a record to be made of each tombstone or memorial taken from the burial ground under this section containing—

(a) a copy of any inscription on it; and

(b) if it is intended to preserve the tombstone or memorial, a statement showing where it has been taken to;

and shall deposit a copy of the record with the Registrar-General.

(8) Nothing in the foregoing provisions of this section shall relieve the Corporation from any obligation to which they are subject apart from those provisions to obtain for any work a faculty or licence of a consistory court.

Subsections (2) to (4) of this section shall not have effect in relation to any work for which the Corporation obtain such a faculty or licence; and subsection (5) thereof shall not have effect in relation to any tombstone, memorial or railings for whose removal such a faculty or licence was obtained.

(9) In this section—

“burial ground” includes a cemetery;

“grave” includes a grave space;

“tombstone” includes a kerb.



PART VI  
—cont.  
Aerodrome  
undertaking

43.—(1) In the event of the Corporation's establishing, in pursuance of sections 19 and 20 of the Civil Aviation Act, 1949, an aerodrome, with or without any ancillary business in connection therewith (in this section referred to as "the aerodrome undertaking"), they may either—

- (a) themselves manage the aerodrome undertaking, making such reasonable charges in respect thereof as they think fit; or
- (b) subject to the provisions of subsection (6) of the said section 19, let it, or any part thereof, for such consideration, and on such terms and conditions, as they think fit:

Provided that nothing in this subsection shall authorise any variation of a scale of charges approved or prescribed by the Minister of Aviation in pursuance of powers conferred on him by or under the said Act.

(2) The Corporation may make byelaws with respect to the aerodrome undertaking, and for maintaining order in, and for regulating the use of, any premises used in connection therewith.

(3) The aerodrome undertaking shall be in the same relation to the Minister of Aviation, and subject to the like control by him under the Civil Aviation Act, 1949, as if this Act had not been passed.

Further  
provisions  
as to  
Sandbanks,  
etc.

44.—(1) The lands vested in the Corporation and known as the Sandbanks Recreation Ground shall be deemed to be held by the Corporation for the purposes of section 164 of the Public Health Act, 1875.

(2) Section 39 (Power to establish pleasure grounds and erect and let bathing huts, &c.) of the Act of 1919 shall have effect as if for the words "bathing and other huts" there were substituted the words "beach and other huts" and as if after the words "similar structures" there were inserted the word "shops".

(3) Section 41 (For protection of Sandbanks owners, &c.) of the Act of 1919 shall have effect as if—

- (a) the following paragraph were substituted for paragraph (1) thereof:—

"(1) (a) The Corporation shall not exercise upon the lands at Sandbanks now vested in them and known as the Sandbanks Recreation Ground, except within an area or areas not exceeding in the whole five acres in extent, the power to erect beach and other huts and similar structures, shops, tents, booths and stalls conferred by subsection (1) of section 39 (Power to establish pleasure grounds and erect and let bathing huts, &c.) of this Act and the power to construct



bathing pools, baths, shelters, pavilions and conveniences conferred by section 40 (Power to construct bathing pools, &c.) of this Act;

(b) no erection whatsoever shall be placed by the Corporation upon the said recreation ground within—

(i) seventy-five feet of the western boundary thereof; or

(ii) one hundred and eighty feet of the eastern boundary thereof; or

(iii) the part of the said recreation ground which is bounded on the north by the northern boundary thereof, on the east by a line drawn parallel to and at a distance of one hundred and eighty feet west of the eastern boundary thereof, on the south by a line drawn parallel to and at a distance of sixty feet to the south of the said northern boundary and on the west by a line drawn parallel to and at a distance of five hundred and eighty-five feet to the west of the said eastern boundary;

(c) no erection except of beach and other huts shall be placed under the powers of the said subsection and section by the Corporation upon the said recreation ground within one hundred and fifty feet of the western boundary thereof;

(d) no erection placed under the powers of this Act upon the Sandbanks Recreation Ground shall exceed in height fourteen feet:

Provided that subject to the provisions of subparagraphs (a), (b) and (c) of this paragraph the Corporation may build on any part of the said recreation ground—

(i) beach and other huts not exceeding two storeys in height; and

(ii) a cafe the highest point of which is not more than forty-six feet above ordnance datum (Newlyn)";

(b) the following proviso were inserted at the end of paragraph (2) thereof:—

“ Provided further that nothing in this paragraph shall prevent the erection by the Corporation of beach and other huts between a point one hundred and fifty feet east of the western boundary of the Sandbanks Recreation Ground and a point seventy-five feet east of the said boundary ”.



PART VI  
—cont.

(4) Section 36 (For protection of Poole Harbour Commissioners) of the Act of 1919 shall have effect as if the following were substituted for paragraph (5):—

“(5) (a) The Corporation shall not exercise upon the lands at Sandbanks now vested in them and known as the Sandbanks Recreation Ground, except within such area or areas not exceeding in the whole five acres as shall from time to time be approved in writing by the Commissioners, the power to erect beach and other huts and similar structures, shops, tents, booths and stalls conferred by subsection (1) of section 39 (Power to establish pleasure grounds and erect and let bathing huts, &c.) of this Act and the power to construct bathing pools, baths, shelters, pavilions and conveniences conferred by section 40 (Power to construct bathing pools, &c.) of this Act;

(b) no erection whatsoever shall be placed under the powers of the said subsection and section by the Corporation upon the said recreation ground within—

(i) seventy-five feet of the western boundary thereof; or

(ii) one hundred and eighty feet of the eastern boundary thereof; or

(iii) the part of the said recreation ground which is bounded on the north by the northern boundary thereof, on the east by a line drawn parallel to and at a distance of one hundred and eighty feet west of the eastern boundary thereof, on the south by a line drawn parallel to and at a distance of sixty feet to the south of the said northern boundary and on the west by a line drawn parallel to and at a distance of five hundred and eighty-five feet to the west of the said eastern boundary;

(c) no erection except of beach and other huts shall be made under the provisions of the said sections by the Corporation upon the said recreation ground within one hundred and fifty feet of the western boundary.”

(5) Section 106 (Power to set apart part of Sandbanks Recreation Ground as a parking place for vehicles) of the Act of 1928 shall have effect as if for the words “one acre” there were substituted the words “three acres” and as if for the words “subsections (4) (6) (7) and (9) of section 68 (Power to provide parking places for vehicles) of the Public Health Act 1925” there were substituted the words “section 81 of the Road Traffic Act, 1960”.



## PART VII

## PUBLIC ORDER AND PUBLIC SAFETY

**45.**—(1) No procession shall pass through the streets of the borough unless written notice stating the route by which, and the date and time on and at which, it will pass has been delivered at the office of the town clerk, and at the principal police station in the borough, by midday on the day next but one before the date stated, treating as not an intervening day a Sunday, Christmas Day, Good Friday, bank holiday or day appointed for public thanksgiving or mourning.

(2) If a procession passes through the streets of the borough in contravention of the foregoing subsection, or by a route, or at a time, other than that stated in the notice delivered with respect thereto under that subsection, any person organising or conducting the procession shall be liable to a fine not exceeding ten pounds.

(3) In this section “procession” means any public or ceremonial procession or any circus procession or procession of wild animals:

Provided that nothing in this section shall apply to a public or ceremonial procession habitually held.

**46.**—(1) As from the appointed day no person shall commence to erect in the borough a stand capable of affording seating or standing accommodation for twenty or more persons at any one time unless he has given notice to the Corporation of his intention to do so, accompanied by a plan and section of the stand and such further particulars as the Corporation may reasonably require, and the Corporation have approved the erection of the stand under this section.

(2) Within five weeks from the receipt of such a notice from any person the Corporation may give him notice that they approve the erection of the stand, but only subject to—

(a) such modifications of the plan, section and particulars submitted to them; and

(b) compliance with such requirements as to maintenance and otherwise;

as may be specified in the notice, being modifications and requirements which appear to the Corporation to be necessary for securing the stability of the stand and protection against fire, and generally for securing the safety of persons to be accommodated thereon.

(3) If a notice given under subsection (1) of this section states the period for which it is proposed that the stand will remain erected, the Corporation shall have regard to that statement in considering what modifications and requirements are to be specified in a notice under subsection (2) of this section, but may by the last-mentioned notice require that the stand shall be



PART VII  
—cont.

pulled down and removed within such time from the expiration of that period as may be specified in the notice, or such further time as the Corporation may allow.

(4) The Corporation may at any time within the said five weeks give notice that they approve the erection of the stand in accordance with the plan, section and particulars submitted to them; and, if within the said five weeks the Corporation have not given notice under subsection (2) of this section, they shall be deemed for the purposes of this section to have so approved the erection of the stand.

(5) Any person aggrieved by a requirement or other decision of the Corporation under this section may appeal to a magistrates' court.

(6) If any person—

- (a) commences to erect in contravention of subsection (1) of this section a stand capable of affording seating or standing accommodation for twenty or more persons at any one time; or
- (b) erects such a stand otherwise than in accordance with a plan, section and particulars submitted to the Corporation under the said subsection (1), or, if notice has been given of any modifications under subsection (2) of this section, otherwise than in accordance with the said plan, section and particulars as modified by the notice; or
- (c) being the owner or occupier of such a stand erected otherwise than as aforesaid, allows twenty or more persons to be on the stand at any one time; or
- (d) being the owner or occupier of such a stand, fails to comply with any requirement imposed by a notice under subsection (2) or subsection (3) of this section;

he shall be liable to a fine not exceeding fifty pounds and, in the case of any such failure, to a daily fine not exceeding forty shillings:

Provided that nothing in this subsection shall apply to a stand the erection whereof was commenced before the appointed day.

(7) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936, as applied by this Act, the provisions of this section shall be provisions which it is the duty of the Corporation to enforce.

(8) The provisions of this section shall not apply to a stand erected by the proprietor of a travelling circus, roundabout or amusement fair for the purposes of his business as such.

(9) In this section "stand" includes a structure, but does not include a building, or extension of a building, to which building byelaws are applicable.



47. For the purposes of section 91, (Prohibition of touting and hawking in streets, &c.) of the Act of 1928—

PART VII

—cont.

Amendment  
of section 91  
of Act of  
1928.

(1) the expression “sea” shall include Poole Harbour and the expression “sea front” shall be construed accordingly;

(2) Poole Quay shall be deemed to be a street:

Provided that nothing in the said section 91 as amended by this section shall restrict the selling or offering for sale of fish from a bona fide fishing boat moored alongside Poole Quay if—

(a) the fish is sold or offered for sale from the fishing boat by means of which it has been caught; and

(b) nothing (other than the fish so sold or offered for sale or any fish container) is placed upon the said quay for the purpose of or in connection with such sale or offer for sale.

48.—(1) No person shall, without the consent of the Corporation, erect, provide, place or use any structure, or place any chair, on any part of the seashore belonging or let to them unless he is authorised to do so by or under an enactment: Unauthorised  
structures on  
seashore.

Provided that nothing in this section shall prevent a person's placing a chair or chairs on the seashore for his own personal use or that of his family.

(2) Any person aggrieved by the refusal of the Corporation to give their consent under the foregoing subsection may appeal to a magistrates' court.

(3) If any person erects, provides or places a structure or chair in contravention of subsection (1) of this section, he shall be liable to a fine not exceeding five pounds, and, if after his conviction thereof the structure or chair remains on any such part of the seashore, he shall be liable to a fine not exceeding twenty shillings for each day on which it so remains.

(4) If any person uses a structure in contravention of subsection (1) of this section, he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding twenty shillings.

(5) In this section “structure” means any shed, hut, shelter, tent, booth, stall, stand, shop or other erection or obstruction, whether on wheels or not.

49.—(1) Notwithstanding anything in the Town Police Clauses Act, 1847, the Corporation may suspend or revoke the licence— Hackney  
carriages.

(a) of a proprietor of a hackney carriage, on the ground of the unfitness of the hackney carriage or on the ground that since the granting of the licence the vehicle has been transferred to a person other than the person to whom the licence was granted and is not being used as a hackney carriage; or



PART VII  
—cont.

(b) of a driver of a hackney carriage, on the ground that he has since the granting of the licence been convicted of an offence involving dishonesty or violence.

(2) Any hackney carriage proprietor or driver aggrieved by a decision of the Corporation under subsection (1) of this section may appeal to a court of quarter sessions.

(3) The provisions of this section shall not apply to a public service vehicle as defined in the Road Traffic Act, 1960.

Precautions  
against  
fire in  
certain  
buildings.

50.—(1) Where plans for the erection or extension of a building are in accordance with building byelaws deposited with the Corporation and the plans show that the building—

(a) will not be provided with such means of access for fire brigade appliances and personnel; or

(b) will not leave or make provision for such means of access for fire brigade appliances and personnel to an existing building or to a proposed building the plans of which have been passed by the Corporation;

as the Corporation may consider necessary to enable effective action to be taken in case of fire at such building or existing building or proposed building (as the case may be), the Corporation shall reject the plans:

Provided that the provisions of this section shall not apply to an extension of a building unless—

(i) the erection of the extension would reduce or interfere with such means of access to any building or proposed building for fire brigade appliances and personnel as may exist at the time of the deposit of the plans of the extension; or

(ii) the extension of the building would render insufficient such means of access for fire brigade appliances and personnel as exist at the time of the deposit of the plans of the extension.

(2) If the Corporation reject the plans under the authority of this section, the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) Any question arising under this section between the Corporation and a person by whom or on whose behalf the plans are deposited as to whether the plans show that the building will be provided with, or, as the case may be, will leave or make provision for the necessary access for fire brigade appliances and personnel, may on the application of that person be determined by a magistrates' court.



**51.**—(1) If it appears to the Corporation that for the purpose of preventing fire in any such building in the borough as is referred to in paragraphs (a) to (d) of subsection (5) of section 59 of the Act of 1936 or for the purpose of preventing injury or danger to persons resorting thereto—

PART VII  
—cont.  
Further provision for public and other buildings.

(a) the apparatus or fittings for lighting or heating the building require alteration; or

(b) the arrangement of the chairs and seating requires alteration; or

(c) any floor requires strengthening in order to prevent overloading;

the Corporation may by notice require the owner or occupier of the building to make such provision in regard to the matters aforesaid as may be necessary:

Provided that this subsection shall not apply to premises in respect of which a licence under the Theatres Act, 1843, or the Cinematograph Acts, 1909 and 1952, is for the time being in force.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

**52.**—(1) Section 59 of the Act of 1936 shall have effect, in its application to the borough, as if paragraph (b) of subsection (5) thereof were deleted and the following paragraph were substituted therefor:—

Amendment of sections 59 and 60 of Act of 1936.

“(b) any restaurant, shop, store, office or warehouse in which more than ten persons are employed”.

(2) Section 60 of the Act of 1936 shall have effect, in its application to the borough, as if—

(a) in subsections (1) and (4) thereof the words “eighteen feet” were substituted for the words “twenty feet”;

(b) paragraph (c) of subsection (4) thereof were deleted and the following paragraph were substituted therefor:—

“(c) is used as a restaurant, shop, store, office or warehouse”;

(c) the following paragraph were inserted in the said subsection (4):—

“(d) is used for the holding of dances or dancing classes other than—

(i) any premises in respect of which a licence has been granted under Part IV (Music and Dancing) of the Public Health Acts Amendment Act, 1890;



PART VII  
—cont.

(ii) any building or part of a building in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force;

(iii) a private house used for the holding of dances (but not dancing classes) to which the public are not admitted”.

Firemen's  
switches for  
luminous  
tube signs.

53.—(1) This section applies to apparatus consisting of luminous tube signs designed to work at a voltage normally exceeding six hundred and fifty volts, or other equipment so designed, and of the transformers required to raise the voltage so as to operate the signs or equipment, not being apparatus which is inside a building and is attended while in operation.

(2) As from the appointed day apparatus in the borough to which this section applies shall be provided with a cut-off switch on the low-voltage side of the transformer; and the switch shall be so placed, and coloured or otherwise marked, as to satisfy such reasonable requirements as the Corporation may impose to secure that it shall be readily accessible to, and recognisable by, firemen.

(3) Not less than fourteen days before work is begun to instal apparatus to which this section applies, the consumer shall give notice to the Corporation showing where the cut-off switch is to be placed and how it is to be coloured or otherwise marked.

(4) Where apparatus to which this section applies has been installed before the appointed day, the consumer shall, not less than fourteen days before the appointed day, give notice to the Corporation—

(a) in the case of apparatus already provided with a cut-off switch on the low-voltage side of the transformer, showing where the switch is placed and how it is coloured or otherwise marked,

(b) in the case of apparatus not already provided with such a cut-off switch as aforesaid, showing where the switch is to be placed and how it is to be coloured or otherwise marked.

(5) Where notice has been given to the Corporation as required by subsection (3) or subsection (4) of this section the proposed, or, as the case may be, actual, position, colouring or marking of the switch shall be deemed to satisfy the requirements of the Corporation unless, within ten days from the date of the service of the notice, the Corporation have served on the consumer a counter-notice stating that their requirements are not satisfied.

(6) A cut-off switch which complies with the regulations of the Institution of Electrical Engineers shall for the purposes of this section be deemed to satisfy the requirements of the Corporation.



(7) A person aggrieved by a counter-notice served by the Corporation under subsection (5) of this section may appeal to a magistrates' court, and the court, if it allows the appeal, shall order the cancellation of the counter-notice.

(8) The owner or the occupier of premises where apparatus is installed which does not comply with subsection (2) of this section shall be guilty of an offence.

(9) A person who fails to give notice as required by subsection (3) or subsection (4) of this section shall be guilty of an offence.

(10) A person guilty of an offence under this section shall be liable to a fine not exceeding five pounds and, in the case of an offence under subsection (8) of this section, to a daily fine not exceeding two pounds.

(11) The provisions of this section shall not affect the requirements of the Electricity Supply Regulations, 1937, or any regulations that may be made under section 60 of the Electricity Act, 1947.

(12) This section shall not apply to apparatus installed on or in premises or any part of premises in respect of which a licence under the Cinematograph Acts, 1909 and 1952, is for the time being in force:

Provided that where any luminous tube sign to which, but for this subsection, subsection (1) of this section would apply is proposed to be fitted on or in any such premises the owner or occupier thereof shall before such apparatus is fitted give notice to the Corporation informing them of the position in which it is proposed to place the cut-off switch.

54.—(1) Where plans of any proposed work deposited with the Corporation in pursuance of building byelaws include proposals for the construction, alteration or extension of an underground car park, or the alteration of a building for use as an underground car park, the Corporation may, notwithstanding anything in section 64 of the Act of 1936, reject the plans, unless there are put before them such proposals as appear to them to be satisfactory for preventing or reducing danger from fire being proposals relating to all or any of the following matters:—

- (a) the construction of the underground car park and the approaches thereto and the materials to be used in such construction;
- (b) the provision of adequate means of ventilation to the underground car park;
- (c) the provision of electrical and mechanical and heating equipment in the underground car park;
- (d) the provision of fire-fighting equipment and appliances in connection with the underground car park;



PART VII  
—*cont.*

(e) the provision of safe and adequate means of ingress to and egress from the underground car park;

(f) the provision of adequate means of access to the underground car park for fire brigade appliances and personnel.

(2) Subsection (2) of section 64 and subsections (2) to (5) of section 65 of the Act of 1936 shall have effect as if this section were a section of that Act.

(3) If any question arises between the Corporation and a person who has executed or proposes to execute any work—

(a) whether the work is such as is mentioned in subsection (1) of this section; or

(b) whether the Corporation ought to have treated as satisfactory any proposal put before them in pursuance of the said subsection;

that question may on the application of that person be referred to the Secretary of State for determination and the Secretary of State (after holding an inquiry if he thinks fit) shall determine any question submitted to him under paragraph (a) of this subsection, or (as the case may be) may direct the Corporation to treat as satisfactory the said proposal or the said proposal as modified by him.

(4) If after plans of any underground car park have been passed by the Corporation in consequence of any proposals made under subsection (1) of this section it appears to the Corporation that any such proposal has not been carried into effect or is not being observed, the Corporation may by notice to the owner or occupier of the underground car park prohibit its use as an underground car park until the proposal has been carried into effect or is being observed.

(5) A person on whom a notice has been served under subsection (4) of this section may appeal to a magistrates' court on the ground that the proposal referred to in the notice has been carried into effect or is being observed.

(6) If any person on whom a notice has been served under subsection (4) of this section uses the underground car park or permits it to be used as an underground car park without giving effect to or securing the observance of any proposal specified in the notice, he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

Further  
provision as  
to under-  
ground car  
parks.

**55.**—(1) Without prejudice to the provisions of section 54 (Underground car parks) of this Act, the Corporation may, by notice to the owner or occupier of any underground car park in the borough which is first brought into use after the passing of this Act, require compliance with such conditions as to the use of the underground car park as may be specified in the notice for the purpose of preventing or reducing danger from fire therein and in the case of any underground car park as aforesaid in



respect of which plans are not deposited with the Corporation in pursuance of building byelaws, the Corporation may by notice to the owner or occupier thereof require him to comply with such conditions as aforesaid and with such other conditions with regard to the matters specified in paragraphs (b) to (f) of subsection (1) of the said section 54 as the Corporation think fit.

(2) If any person on whom a notice under this section has been served fails to comply with any requirements specified in the notice, he shall be liable to a fine not exceeding five pounds and to a daily fine not exceeding forty shillings.

(3) A person on whom a notice under this section has been served may, within twenty-one days of the service of the notice, appeal to the Secretary of State on the ground that any requirement specified in the notice is not justified by this section or is unreasonable in character or extent or is unnecessary.

(4) If so required by any such person, the Corporation shall deliver to him a certificate signed by the town clerk stating the grounds on which the Corporation have made any requirement under this section and, where such person appeals to the Secretary of State against such requirement, the certificate shall be submitted by him to the Secretary of State at the same time that notice of appeal is given or as soon as possible after the receipt by such person of the certificate.

(5) On consideration of any such appeal the Secretary of State may, if he thinks it necessary or desirable, cause an inquiry to be held and a report to be made to him by a person appointed by him for the purpose and may, if he thinks fit, confirm, modify, alter or annul any requirement made by the Corporation under this section.

**56.—**(1) In the last two foregoing sections the expression “underground car park” means a building or part of a building (other than a building or part of a building in respect of which a licence issued by a local authority or the Secretary of State under section 2 or section 3 of the Petroleum (Consolidation) Act, 1928, is in force or a building or part of a building to which regulations made by the Secretary of State under section 10 of that Act apply) which provides waiting space or storage space (either alone or in addition to any other facility or service) for cars or other vehicles and of which any part of the floor is situated more than four feet below the surface of the ground adjoining or nearest to such building or part of a building.

Interpretation  
and powers of  
entry for  
purposes of  
last two  
foregoing  
sections.

(2) For the purposes of paragraph (a) of subsection (1) of section 287 of the Act of 1936 as applied by this Act the provisions of the last two foregoing sections shall be provisions which it is the duty of the Corporation to enforce.



PART VII  
—*cont.*  
Saving for  
Fire Services  
Acts and  
Factories Acts.

57. Nothing in the following sections of this Act (namely):—

Section 50 (Precautions against fire in certain buildings);

Section 51 (Further provision for public and other buildings);

Section 52 (Amendment of sections 59 and 60 of Act of 1936);

Section 53 (Firemen's switches for luminous tube signs);

Section 54 (Underground car parks);

Section 55 (Further provision as to underground car parks);

shall affect the operation of the Fire Services Acts, 1947 to 1959, or the Factories Acts, 1937 to 1959, or any regulations or orders made thereunder.

PART VIII

FINANCE, RATING AND SUPERANNUATION

Power to  
borrow.

58.—(1) The Corporation may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

(b) without the consent of any sanctioning authority, such sums as may be necessary for the payment of the costs, charges and expenses of this Act;

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

Insurance  
fund.

59.—(1) The Corporation may establish a fund to be called "the insurance fund", with a view to providing a sum of money which shall be available for making good such losses, damages, costs and expenses, as may from time to time arise in respect of such risks, as may from time to time be specified in a resolution of the council (in this section referred to as "the specified risks").

(2) The establishment of an insurance fund under this section shall not prevent the Corporation from insuring in one or more insurance offices against the whole or any part of all or any of the specified risks.



(3) When the insurance fund shall amount to the prescribed amount (as hereinafter defined), the Corporation shall discontinue the appropriations to the fund under subsection (4) of this section, but, if the fund is at any time reduced below the prescribed amount, the Corporation shall recommence and continue such appropriations, until the fund be restored to the prescribed amount, and if at any time the Corporation reduce the prescribed amount, so that there are more moneys in the insurance fund than the sum so prescribed, such moneys shall be transferred to the general rate fund and (if any sums shall have been appropriated from the housing revenue account under the next succeeding subsection) to the housing revenue account in such proportions as the Corporation consider equitable, and any moneys so transferred to the general rate fund shall be apportioned between the several accounts of that fund in such proportions as the Corporation consider equitable.

(4) The Corporation may, from time to time, appropriate to the insurance fund such sums as they think fit from the appropriate account in the general rate fund, and (if they think fit) from the housing revenue account, and shall show the same in their accounts under the separate heading or division in respect of the particular undertaking, department or service of the Corporation which, if the specified risks were insured against in an insurance office, would be properly chargeable with the payment of the premium of such insurance:

Provided that any payments by contribution from the housing revenue account shall not exceed the proportion of the total yearly payments which in the opinion of the Corporation properly relates to the specified risks arising from the purposes for which that account is kept.

(5) (a) Except so far as the insurance fund and the proceeds of sale of securities in which that fund is invested may be necessary to meet losses, damages, costs and expenses in respect of the specified risks or any of them, all moneys for the time being standing to the credit of the insurance fund shall (unless applied in any other manner authorised by any enactment) be invested in any securities in which trustees are for the time being authorised to invest trust money, and the interest and other annual proceeds received by the Corporation in respect of such investments shall be carried to and form part of the general rate fund.

(b) The Corporation shall in every financial year carry to the credit of the insurance fund out of the revenue moneys of the general rate fund an amount equal to the interest and other annual proceeds carried to the general rate fund in pursuance of the last preceding paragraph.

(6) (a) The insurance fund shall be applied to meet any losses, damages, costs or expenses sustained by the Corporation



PART VIII  
—cont.

in respect of the specified risks which are payable out of the insurance fund, in the order of the dates on which such losses, damages, costs or expenses become ascertained, and, if at any time and from time to time the insurance fund shall be insufficient to make good any such losses, damages, costs or expenses, the Corporation may, with the sanction of the Minister, borrow at interest under and subject to the provisions of Part IX of the Act of 1933 such sums of money as will be necessary to make up the deficiency.

(b) The amounts of the annual charges in respect of interest on and repayment of principal of any sums borrowed in pursuance of the preceding paragraph of this subsection and the amounts of any such deficiencies as aforesaid not made up by borrowing shall be paid out of the general rate fund and charged in the accounts of the Corporation under the separate headings or divisions in respect of such undertakings, departments or services of the Corporation and in such proportions as the Corporation may determine having regard to the risks through which such deficiencies arise.

(7) In this section—

“ insurance office ” means—

- (i) an insurance company; or
- (ii) an underwriter being a member of an association of underwriters;

“ prescribed amount ” means such sum as may from time to time be prescribed by the council.

Sea defence  
reserve fund.

60.—(1) The Corporation may establish a fund, to be called “ the sea defence reserve fund ”, to which they may apply from the general rate fund any sum not exceeding in any financial year the equivalent of a rate of twopence in the pound as ascertained or estimated for the purpose of section 9 of the Rating and Valuation Act, 1925, and the maximum amount standing to the credit of such fund shall from time to time be determined by the Corporation.

(2) (a) Pending the application of the moneys in the sea defence reserve fund to the purposes authorised by subsection (3) of this section such moneys shall (unless applied in any other manner authorised by any enactment) be invested in any securities in which trustees are for the time being authorised to invest trust moneys.

(b) Any income arising from the investment of the moneys in the sea defence reserve fund in the manner provided by the foregoing paragraph and any income arising from the application of the fund to the purposes authorised shall be carried to the



general rate fund and (subject to the limitations imposed by subsection (1) of this section) an amount equivalent to such income shall be credited to the sea defence reserve fund.

PART VIII  
—cont.

(3) The sea defence reserve fund shall be applicable to the construction of works as a defence against the sea and to make good any damage and to meet any extraordinary claim or demand arising from accident to any of such works and so that, if at any time the fund be reduced, it may thereafter be again restored to the maximum sum determined by the Corporation and so from time to time as often as such reduction happens.

(4) Resort may be had to the sea defence reserve fund under the foregoing provisions of this section, although such fund may not at the time have reached or may have been reduced below the maximum sum determined by the Corporation.

61. Notwithstanding anything contained in any other enactment, the Corporation may, if they think fit, apply any moneys derived from the sale of corporate estate (whether or not such moneys are applied from the capital fund of the Corporation) towards the expense (not being an expense falling to be met by any other person) of the development of a civic centre for the borough including the provision of assembly halls and other buildings and a swimming bath.

Use of  
moneys  
derived from  
sale of  
corporate  
estate.

62. Without prejudice to section 292 of the Act of 1936, and to that section as applied by any other enactment, where under any enactment the council are empowered to execute works at the request of, or in default of, the owner or occupier of any premises, and to recover from him the expenses incurred by them in so doing, they may include in, and recover as part of, the expenses such additional sum, not exceeding five per centum of the cost of the works, as they think fit in respect of their establishment charges.

Establishment  
expenses.

63. The Corporation may pay to the sheriff of the borough such remuneration as they think reasonable.

Sheriff's  
allowances.

64. Notwithstanding anything in subsection (5) of section 1 of the Small Dwellings Acquisition Act, 1899, where any person repays any part of any advance of money made to such person by the Corporation under the Small Dwellings Acquisition Acts, 1899 to 1923, the amount of each periodical payment subsequently to be made by such person need not be reduced in accordance with the table referred to in the said subsection, but may remain unvaried, and in that event the period during which the advance is to be repaid shall be appropriately reduced.

As to  
repayment of  
loans under  
Small  
Dwellings  
Acquisition  
Acts, 1899  
to 1923.



## PART VIII

—cont.

Recovery of  
rates from  
tenants and  
lodgers.

65. For the purposes of section 15 of the Rating and Valuation Act, 1925, the rates due from the person rated for any hereditament within the borough shall be deemed to be in arrear, if such rates are not paid within one month after lawful demand in writing has been made for the same.

Investment of  
super-  
annuation  
fund.

66.—(1) In its application to the Corporation, subsection (3) of section 21 of the Local Government Superannuation Act, 1937, shall have effect, as if for the obligation to invest, as mentioned in that subsection, moneys forming part of, but not for the time being required to meet payments to be made out of the superannuation fund maintained by the Corporation under that Act, there were substituted an obligation to invest such moneys as follows (namely):—

- (a) in or upon any investments authorised by section 1 of the Trustee Act, 1925, but without the limitations imposed by the proviso in subsection (1) of section 2 of the said Act or in or upon any other investments for the time being authorised by law for the investment of trust funds; or
- (b) in or upon any of the stocks, funds or securities of any dominion, commonwealth, union, dependency or colony forming part of the British Commonwealth of Nations or any province or state having a separate local legislature and forming part of any such dominion, commonwealth, union, dependency or colony; or
- (c) in or upon any of the stocks, bonds, mortgages or securities of any municipality or county or district council or local or public authority or board in the United Kingdom or in any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid authorised under any general or special Act of the United Kingdom Parliament or of the legislature concerned to issue the same; or
- (d) in or upon any stocks, shares, bonds, mortgages or securities the capital whereof or a minimum rate of dividend or interest whereon is guaranteed by the United Kingdom Government or by the government of any such dominion, commonwealth, union, dependency, colony, province or state as aforesaid; or
- (e) in or upon—
  - (i) the bonds, debentures, debenture stock, mortgages, obligations or securities or the guaranteed or preference or ordinary stock or shares or ordinary preferred or deferred or other stock or shares of any company, incorporated or registered in the United



Kingdom, being stock or shares which are at the time of making the investment quoted on any recognised stock exchange; or

(ii) units of any unit trust scheme declared by the Board of Trade to be an authorised unit trust scheme for the purposes of the Prevention of Fraud (Investments) Act, 1958; or

(f) in the purchase of freehold ground rents or freehold or leasehold land, messuages, tenements and hereditaments within the United Kingdom, provided that, as regards leaseholds, the term thereof shall have at least sixty years to run; or

(g) upon the security of freehold property, freehold ground rents, land charges or rentcharges by way of first mortgage, up to the limit of two-thirds of the value thereof;

with power of varying such investments from time to time by sale and reinvestment or otherwise:

Provided that the investment of such moneys as aforesaid in any investment of the nature specified in paragraph (e) of this subsection shall be subject to the following qualifications:—

(i) no investment shall be made in any company which has not paid a dividend of at least four per centum on the ordinary stock or shares of the company for each of the four years immediately preceding the date of investment or if the company has been incorporated or has been trading for less than four years before that date unless—

(A) the company has paid such dividend for each of the years since incorporation or commencement of trading as the case may be; or

(B) in the case of a company which has not been incorporated or trading for at least one year before the date of investment, but which has been formed by the amalgamation of other companies, each of such other companies has paid a dividend of at least four per centum on its ordinary stock or shares for each of the four years immediately preceding the date of the amalgamation;

(ii) no investment shall be made at any time when the value of all the investments made under the said paragraph (e) which form part of the superannuation fund equals or exceeds one-half of the total value of the assets of that fund;

(iii) no investment shall be made in securities transferable by delivery.



PART VIII  
—cont.

(2) For the purposes of subsection (1) of this section the value of any investment of moneys forming part of the superannuation fund shall be treated as being the value of the investment at the time at which it was made.

(3) All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the superannuation fund maintained by them or otherwise in relation thereto, shall be paid by the Corporation out of that fund.

(4) In this section the expression “ recognised stock exchange ” means any body of persons which is for the time being a recognised stock exchange for the purposes of the Prevention of Fraud (Investments) Act, 1958.

## PART IX

## MISCELLANEOUS

Electronic or  
mechanical  
accounting  
equipment.

67. At any time after the Corporation have provided any electronic or mechanical accounting equipment for the purposes of all or any of their accounting work, they may by agreement with any other person use or permit that other person to use the said equipment for the purposes of that other person and they may make such charges as may be agreed for the use of the said equipment.

False  
statements  
to obtain  
rent rebate,  
etc.

68.—(1) Any person who for the purpose of obtaining for himself or for any other person any of the benefits or advantages hereinafter mentioned—

(a) knowingly makes to the Corporation or to any of their employees a false statement or false representation relating to his or that other person's—

(i) need for the benefit or advantage; or

(ii) ability to pay a rent or make any other payment;

or

(b) produces or furnishes or knowingly allows to be produced or furnished to the Corporation or to any of their employees any document or information relating to the matters aforesaid which he knows to be false in a material particular;

shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and imprisonment.

(2) The benefits or advantages hereinbefore referred to are—

(a) the occupation of any house belonging to the Corporation;

(b) a rebate of the rent of any such house;

(c) the avoidance or refund of any part of the rent of any such house;



- (d) any advance from the Corporation under the Small Dwellings Acquisition Acts, 1899 to 1923, the Housing Act, 1957, or the Housing (Financial Provisions) Act, 1958;
- (e) any payment by the Corporation under section 63 or section 100 of the Housing Act, 1957, or section 13 of the Town and Country Planning Act, 1959; or
- (f) any grant under the Housing Act, 1949, the Housing (Financial Provisions) Act, 1958, or the House Purchase and Housing Act, 1959.

(3) If any person is convicted of an offence under this section the court may—

- (a) terminate the tenancy of the house of which occupation had been obtained and order possession thereof to be given to the Corporation;
- (b) order the person convicted to pay to the Corporation the amount of the addition to the rent avoided by or refunded to him or (as the case may be) the amount of the rebate obtained by him;
- (c) order the person convicted to make such payments as the court may think just to the Corporation in respect of any payment referred to in paragraph (e) or grant referred to in paragraph (f) of subsection (2) of this section.

69.—(1) Notwithstanding anything contained in the Public Libraries Acts, 1892 to 1919, the powers of the Corporation under those Acts in relation to any library provided by them under those Acts shall include—

Further powers as to libraries.

- (a) the power to charge such reasonable sum as the Corporation may prescribe for the reservation of an article;
- (b) the power to prescribe a period not being less than seven days within which any article borrowed from such library must be returned thereto;
- (c) the power to recover from any person who fails within such prescribed period to return to such library any article so borrowed such reasonable sum as the Corporation may prescribe in respect of each week or portion of a week in which he so fails to return such article, together with any expenses incurred by the Corporation in sending to such person notices in respect of such article;
- (d) the power to prohibit any such person from borrowing any other article from any library provided by the Corporation under those Acts until such person has paid any such sum as is due to the Corporation under paragraph (c) of this subsection;



PART IX  
—cont.

- (e) the power to prescribe different periods and charges for the purposes of this section in relation to different articles or kinds of articles:

Provided that the sums prescribed by the Corporation for the purposes of paragraph (c) of this subsection shall not exceed sixpence or such greater sum as may be approved from time to time by the Minister of Education.

(2) In this section the expression “article” includes a book, gramophone record, music, manuscript, newspaper, picture, film, film strip, lantern slide, map, plan, print, engraving or photograph.

Recreational  
and other  
facilities for  
employees.

70.—(1) The Corporation may, within or without the borough, provide and maintain recreational, social and welfare facilities for their employees.

(2) For the purposes aforesaid the Corporation may—

- (a) acquire and maintain buildings or acquire or appropriate land and erect buildings thereon;
- (b) with the consent of the Minister, adapt any premises or erect any buildings on any land belonging to them but not already appropriated for such purposes;
- (c) make such charges as they think fit for the use of such premises;
- (d) make regulations for the management of such premises; and
- (e) lend money or make grants to any club or other social organisation of their employees on such terms as they think fit.

Maintenance  
of buildings of  
architectural  
interest.

71.—(1) Where a building preservation order is in force as respects any building in the borough, and it appears to the Corporation that reasonable steps are not being taken for properly preserving the building, the Corporation may with the consent of the Minister make such contribution, as they may think fit, towards the cost of the maintenance of such building.

(2) In this section the expression “building preservation order” has the meaning assigned to it by section 29 of the Act of 1947.

Notice of  
variation of  
rent, etc.

72. The rent for the time being recoverable by the Corporation, under a tenancy of any premises forming part of any housing accommodation belonging to the Corporation, may be increased or reduced or the terms and conditions of that tenancy may be varied, amended, or added to by the service by the Corporation on the tenant of a notice, specifying the amount of the increase or reduction of rent or the variation or amendment of or addition to the terms and conditions, whether or not such notice is



accompanied by a notice to quit, but such increase, reduction, variation, amendment, or addition shall not take effect until such date as may be specified in the notice, not being earlier than—

PART IX  
—cont.

(1) four weeks after the service thereof; or

(2) the date on which, if this section had not been enacted, the tenancy could have been terminated by serving a notice to quit on the date of the service of the notice under this section;

whichever shall be the later:

Provided that, if before the date specified in the notice the tenant upon whom such notice has been served serves a counter-notice upon the Corporation, requiring them to treat the notice as a notice to quit, the notice shall be deemed to be a notice to quit the premises on that date.

73. The powers of the Corporation under section 134 of the Local Government Act, 1948, shall extend to any information concerning the borough and its neighbourhood.

74. The Corporation may expend on the provision of prizes in connection with any competition relating to their tenants' gardens, or to allotments provided by the Corporation, such sum as they may think fit not exceeding in any one year the sum of one hundred pounds.

75.—(1) Any power conferred on an officer of the Corporation by or under any enactment to enter upon and inspect any building or works in course of construction shall include a power to use, free of expense, for the purpose of the entry or inspection, any ladders, scaffolding and plant in or about the building or works.

Powers to use  
ladders, etc.,  
for entry or  
inspection.

(2) If the builder of, or contractor for, any building or works or any person employed by him in or about any building or works—

(a) refuses to give to such an officer all reasonable assistance in the exercise of the powers conferred by this section; or

(b) otherwise obstructs such an officer in the exercise of those powers;

he shall be liable to a fine not exceeding five pounds.

76. The Corporation may provide and maintain robes of office for the use of the mayor, aldermen and councillors of the borough:

Robes of  
office.



PART IX  
—cont.

Provided that the robes provided by the Corporation under the powers of this section shall remain the property of the Corporation.

Competitions,  
etc.

77.—(1) The Corporation may, either alone or in co-operation with any association or body dealing with the promotion or control of any recreation, organise or conduct any competition.

(2) The Corporation may, in connection with any such competition, charge such entrance fees as they think fit to any entrants for any competition.

(3) The Corporation may expend on the provision of trophies and prizes to be awarded to participants in any such competition such sum as they may think fit not exceeding in any one year five hundred pounds.

(4) For the purposes of this section “competition” means any competition, tournament or contest held in connection with any physical recreation, sport or game and includes any display or exhibition given in connection therewith.

Disposal of  
lost and  
uncollected  
property.

78.—(1) Where any lost or uncollected property is contained in a package, bag or other receptacle, the Corporation may cause such receptacle to be opened and the contents examined, if they deem it necessary to do so, for the purpose either of identifying and tracing the owner of the property or of ascertaining the nature of its contents.

(2) If any lost or uncollected property within three months of coming into the custody of the Corporation be not proved to the reasonable satisfaction of the Corporation to belong to any claimant, it shall thereupon vest in the Corporation.

(3) Where any lost property becomes vested in the Corporation in pursuance of this section, the Corporation may, if they think fit, deliver to the person, whether an employee of the Corporation or not, who placed the lost property in the custody of the Corporation, the whole or any part of such property or of the estimated value thereof in cash.

(4) This section shall, in the case of uncollected property placed in the custody of the Corporation on express terms inconsistent with the rights of the Corporation under this section, have effect subject to those terms.

(5) In this section—

the expression “lost property” means any property (including money) coming into the custody of the Corporation, after being left on or in any premises occupied by the Corporation to which the public have access; and



the expression "uncollected property" means any property deposited in any cloakroom or parcels' store provided by the Corporation for the use of the public in which there is exhibited a notice containing a statement to the effect of subsections (1) and (2) of this section.

PART IX  
—cont.

79. In connection with their powers under the Public Libraries Acts, 1892 to 1919, and under section 134 of the Local Government Act, 1948, the Corporation may publish and sell or dispose of bulletins, journals, periodicals, maps and leaflets and documents of historical or literary interest, having a local connection or relating to the functions of the Corporation:

Power to  
publish  
bulletins, etc.

Provided that nothing in this section shall be deemed to authorise the Corporation to do any act or thing in relation to any work or other subject-matter in, or in relation to, which copyright may subsist, except with the consent of the person in whom the sole right to do or authorise the doing of that act or thing in relation to that work or subject-matter is for the time being vested under the law relating to copyright.

80. The Corporation may enter into and carry into effect agreements with the owners of documents, books or papers of historic or other interest for the custody and exhibition by the Corporation of such documents, books or papers.

Custody of  
ancient  
documents.

81. The Corporation may enter any vehicles belonging to them in carnival processions in the borough and in the neighbourhood of the borough and for that purpose may decorate, or cause to be decorated, any such vehicle:

Corporation  
vehicles in  
processions.

Provided that the sums to be expended by the Corporation in any one financial year in exercise of the powers of this section shall not exceed two hundred and fifty pounds.

82.—(1) If any vehicle is left on any land belonging to, or under the control of the Corporation, or on any grass verge or open space provided or laid out by the Corporation in pursuance of the Housing Act, 1957, or any Act repealed by that Act, the Corporation may, after giving not less than forty-eight hours' notice to the owner of the vehicle, unless it is not practicable after reasonable inquiry to ascertain the name and address of the owner, remove the vehicle for safe custody, and may recover from such owner the expenses reasonably incurred in such removal and safe custody:

Removal of  
vehicles.

Provided that this section shall not apply to a vehicle left—

(a) on a road (as defined in section 257 of the Road Traffic Act, 1960); or



PART IX  
—cont.

(b) in a parking place provided by the Corporation under section 81 of the Road Traffic Act, 1960.

(2) If any vehicle to which subsection (1) of this section applies, be not within six months of its removal by the Corporation, proved to the satisfaction of the Corporation to belong to any claimant, it shall thereupon vest in the Corporation.

Provision of  
yachting  
facilities.

83.—(1) The powers of the Corporation under section 4 of the Physical Training and Recreation Act, 1937, shall include the power to provide yachting facilities, and for that purpose the Corporation may, within the borough, provide and maintain such yacht basins, buildings, slipways, jetties, moorings, starting boxes and other works, as may be necessary or expedient for the purpose thereof or in connection therewith.

(2) Nothing in this section shall authorise the execution of any works on, over or under tidal lands below high-water mark of ordinary spring tides except in accordance with plans and sections approved by the Minister of Transport and subject to such conditions and restrictions as the Minister of Transport may prescribe before such work is begun.

(3) (a) If the Corporation under the powers of this section execute any works in Poole Harbour which interfere with a several oyster or mussel fishery, the Corporation shall pay to the owner of the fishery compensation for the damage or injury caused to the fishery by that interference, not exceeding the reasonable cost of re-establishing the fishery in such other position in Poole Harbour that it will not be interfered with by those works.

(b) Any question which may arise as to whether any work executed under the powers of this section interferes with a several oyster or mussel fishery shall be determined by a single arbitrator to be appointed by agreement between the Corporation and the owner of the fishery or, in default of agreement, to be appointed by the Minister of Agriculture, Fisheries and Food on the application of either the Corporation or the said owner after giving notice in writing to the other.

(c) Any question which may arise as to the amount of any payment to be made under paragraph (a) of this subsection shall be determined by the Lands Tribunal.

(4) In this section the expression “ owner ” includes a lessee.

Boundary  
of Poole  
Harbour.

84.—(1) On or after the removal of the railway line of the commission forming the limits of Poole Harbour at the quays, the Corporation and the Poole Harbour Commissioners may provide and maintain setts or such other devices as they may think fit for marking the position previously occupied by the said railway line.



(2) The cost of providing and maintaining setts or other devices under subsection (1) of this section shall be borne by the Corporation and the Poole Harbour Commissioners in equal shares.

PART IX  
—cont.

(3) On and after the date on which setts or other devices are provided under subsection (1) of this section, section 4 (Limits of harbour) of the Poole Harbour Act, 1914, shall have effect as if in paragraph (B) for the words “to the metal of the London and South Western Railway Company’s line which is nearest to the quay wall” there were substituted the words “to the setts or other devices provided under section 84 (Boundary of Poole Harbour) of the Poole Corporation Act, 1961”.

## PART X

### GENERAL

85. As respects byelaws made under this Act the confirming authority for the purpose of section 250 of the Act of 1933 shall be the Minister except that, in the case of byelaws made under the sections mentioned in the first column of the following table, the confirming authority shall be the authority respectively mentioned in the second column of that table:—

Confirming  
authority for  
byelaws.

|                                                       |                                              |
|-------------------------------------------------------|----------------------------------------------|
| 37 (Byelaws as to sale, etc., of animal feeding meat) | Minister of Agriculture, Fisheries and Food. |
| 39 (Golf courses) ... ..                              | Secretary of State.                          |
| 43 (Aerodrome undertaking) ... ..                     | Minister of Aviation.                        |

86.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

Local inquiries

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act as well as the Ministers therein mentioned.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act, 1946.

87.—(1) In this Act “the appointed day” means such day as may be fixed by resolution of the Council subject to and in accordance with the provisions of this section.

The appointed  
day.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.



PART X  
—cont.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby; and

(b) of the general effect of the provisions of this Act coming into operation as from that date;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page, or part of a page, of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(5) Where any provision of this Act coming into operation on a day fixed by resolution under this section requires the registration of a person carrying on any business, or of premises used for any purpose, it shall be lawful for any person who—

(a) immediately before that day was carrying on that business, or using any premises for that purpose; and

(b) had before that day duly applied for the registration required by that provision;

to continue to carry on that business, or to use those premises for that purpose, until he is informed of the decision with regard to his application, and, if the decision is adverse, during such further time as is provided under subsection (2) of section 92 (Appeals) of this Act.

Authentication  
of documents  
and service of  
notices.

88.—(1) Section 284 of the Act of 1936 (which relates to the authentication of documents) shall apply to any notice or other document that the Corporation are required or authorised to give, make or serve by or under this Act, or by or under any enactment in force immediately before the commencement of this Act.

(2) Section 285 of the said Act of 1936 (which relates to the service of notices) shall apply to any notice or other document required or authorised to be given to, or served on, any person by or under this Act, or by or under any enactment in force immediately before the commencement of this Act, so far as that enactment relates to the Corporation.

(3) The said section 284, or, as the case may be, the said section 285, shall not apply in any case for which provision is made by or under any enactment.



89. No power conferred upon the Corporation by the following sections of this Act (namely):—

PART X  
—cont.  
Saving for  
trusts, etc.

Section 5 (Development of land);

Section 39 (Golf courses);

Section 40 (Provision of zoological and botanical gardens);  
and

Section 54 (Underground car parks);

shall be exercised in such a manner—

(a) as to be at variance with any trust subject to which any land or building is held, managed or controlled by the Corporation without an order of the High Court, or of the Charity Commissioners, or of the Minister of Education, or, where the trust instrument reserves to the donor, or any other person, the power to vary the trust, without the consent of the donor or that other person; or

(b) as to contravene any covenant or condition subject to which a gift or lease of any land or building has been accepted by, or granted to, the Corporation, without the consent of the donor, grantor, lessor or other person entitled in law to the benefit of the covenant or condition.

90. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers concerned, apply and have effect:—

For  
protection of  
certain  
statutory  
undertakers.

(1) In this section unless the subject or context otherwise requires—

“ apparatus ” means—

(a) in relation to the electricity board or the generating board electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by either of such undertakers;

(b) in relation to the gas board mains, pipes or other apparatus belonging to or maintained by that board;

(c) in relation to the water undertakers mains pipes or other apparatus belonging to or maintained by such undertakers;

and includes any works constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under, over, across, along or upon;



PART X  
—cont.

“ operational land ” has the same meaning as in section 119 of the Act of 1947;

“ position ” includes depth;

“ the undertakers ” means the electricity board, the generating board, the gas board and the water undertakers or any of them:

- (2) Nothing in section 5 (Development of land) of this Act shall relieve the Corporation from liability for damage caused by them to any apparatus in the exercise of the powers of the said section and the Corporation shall so exercise those powers as not to obstruct or render less convenient so far as is reasonably practicable the access to any apparatus:

Provided that if any apparatus is situate in land which the Corporation develop or intend to develop under the powers of the said section the undertakers shall if reasonably required by the Corporation—

(i) remove the apparatus and relay or replace it in such other position as the undertakers may reasonably determine; or

(ii) provide and lay or place other apparatus in such other position as aforesaid in lieu of such existing apparatus:

- (3) For the purposes of section 9 (Prohibition of building until street defined) of this Act land shall not be deemed to be occupied as the site of or in connection with a building by reason only of the existence of apparatus in such land:
- (4) Nothing in section 10 (Prohibition of building until street formed and sewered) of this Act shall prevent the undertakers from erecting for the purposes of their undertaking apparatus (including an electricity sub-station, a feeder pillar and a pressure governor or meter house) on land abutting on any new street before such new street is constructed or sewered in accordance with new street byelaws:
- (5) (a) Not less than twenty-eight days before the Corporation in the exercise of the powers of section 12 (Rounding or splaying off corners at street junctions) of this Act require the addition to the carriageway of a street of any portion of a footway or grass margin or garden in which any apparatus is situate the Corporation shall give to the undertakers notice in writing of their intention so to do accompanied by a plan and section of the intended alteration and the undertakers may



(and if reasonably so required by the Corporation shall) alter the position of the apparatus to such other position in—

- (i) the carriageway or footway; or
- (ii) the grass margin or garden (if any) as altered; as may be reasonable;

- (b) The undertakers shall within twenty-eight days from the receipt of a notice from the Corporation pursuant to sub-paragraph (a) of this paragraph give to the Corporation not less than fourteen days' notice of their intention to alter the position of any apparatus (otherwise than on the requirement of the Corporation) under the provisions of that sub-paragraph and shall at the same time deliver to the Corporation a plan and section of the proposed alteration. If such plan and section be not disapproved by the Corporation within fourteen days from the receipt thereof the proposed position of the apparatus shown thereon shall be deemed to be approved:

If such plan and section be disapproved by the Corporation within fourteen days from the receipt thereof the altered position of the apparatus shall be settled by arbitration in default of agreement between the undertakers concerned and the Corporation:

- (6) Nothing in section 13 (Trees, grass verges and gardens) of this Act shall affect the rights of the undertakers with respect to any apparatus (including the placing of apparatus) in any grass verge, garden or space:

Provided that, in exercising such rights, the undertakers shall not cause or permit, except in case of necessity, horses or vehicles to enter upon such verge or space which is maintained in an ornamental condition or mown, or any garden:

- (7) Nothing in the following sections of this Act shall relieve the Corporation, or any person acting with the consent of the Corporation, from liability for damage caused by them or him to any apparatus in the exercise of the powers of the said sections, and the Corporation or such person shall so exercise those powers as not to render unreasonably inconvenient the access to any apparatus:—

- Section 13 (Trees, grass verges and gardens);
- Section 19 (Decorations in streets);
- Section 20 (Fencing and lighting of obstructions in highways);
- Section 83 (Provision of yachting facilities):



PART X  
—cont.

- (8) Nothing in section 14 (Enforcement of improvement line) of this Act shall extend or apply so as to authorise the Corporation to require the undertakers to demolish, set back or alter any building or structure of the undertakers concerned which is used by them for the manufacture, distribution or storage of gas, for the generating, transforming, switching, distribution or regulation of electricity or as a pumping station or reservoir for water:
- (9) The provisions of section 46 (Safety of stands) of this Act shall not apply to a stand used in connection with any works used by the gas board for the manufacture of gas:
- (10) The Corporation shall repay to the undertakers concerned the reasonable expenses incurred by those undertakers in or in connection with the alteration of the position of any apparatus under the provisions of paragraph (5) of this section and the removal and relaying or replacing of any apparatus and the provision and laying or placing of any new apparatus under the provisions of paragraph (2) of this section and the reasonable costs of and incidental to—
- (a) the cutting off of any apparatus from any other apparatus; and
- (b) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 (which imposes limitations on undertakers' rights to payment) shall so far as applicable extend and apply to any payment to be made by the Corporation under this paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 90 (For protection of certain statutory undertakers) of the Poole Corporation Act, 1961":

- (11) (a) Any difference which may arise between the Corporation and the undertakers under this section shall be referred to and determined by a single arbitrator to be appointed by agreement between the parties or in default of agreement on the application of



any party after giving notice in writing to the other party or parties by the President of the Institution of Civil Engineers;

PART X  
—cont.

- (b) In settling any difference under this section the arbitrator may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

91. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Act by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

92.—(1) Section 300 of the Act of 1936 shall apply to appeals to a magistrates' court under this Act; and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement, refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

- (a) involves the execution of any work or the taking of any action; or
- (b) makes it unlawful for any person to carry on a business which he was lawfully carrying on up to the time of the requirement, refusal or decision, or to use premises for any purpose for which they were lawfully used up to that time;

then, until the time for appealing has expired or, when an appeal is lodged, until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work, or take the action, nor shall the Corporation themselves execute the work or take the action; and
- (ii) that person may carry on that business, and use those premises for that purpose.

93. Section 265 of the Public Health Act, 1875, shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee of a local authority. Protection of members and officers of Corporation from personal liability.



## PART X

—cont.

Application  
of general  
provisions of  
Public Health  
Act, 1936.

94.—(1) The sections of the Act of 1936 mentioned in Part I of the schedule to this Act shall have effect as if references therein to that Act included references to this Act.

(2) The sections of the said Act of 1936 mentioned in Part II of the said schedule shall have effect as if references therein to that Act included references to the following parts of this Act, that is to say:—

Part III (Streets);

Part IV (Public health);

Part V (Food).

(3) The section of the said Act of 1936 mentioned in Part III of the said schedule shall have effect as if references therein to that Act included references to the Parts of this Act mentioned in subsection (2) of this section and also to sections 46 (Safety of stands) and 53 (Firemen's switches for luminous tube signs) of this Act.

(4) The sections of the said Act of 1936 mentioned in Part IV of the said schedule shall have effect as if references therein to that Act included references to the said Parts III and IV of this Act.

Repeal.

95. The following enactments are hereby repealed:—

The Act of 1919—

Section 47 (Trees or shrubs overhanging streets and footpaths);

Section 48 (Power to require taking down or repair of dilapidated buildings);

Section 51 (Provisions as to combined drainage for two or more houses);

Section 59 (Houses infested with vermin to be cleansed);

The Act of 1928—

Section 43 (Erection of retaining walls);

Section 46 (No building allowed until street defined);

Section 48 (Dangerous buildings);

Section 50 (Byelaws as to alterations of building);

Section 51 (Area of habitable rooms);

Section 55 (As to restriction of air space);

Section 64 (Penalty on withholding information from medical officer);

Section 69 (As to inspection of premises used for storage of food);

Section 71 (Penalty on original vendor of unsound food);



Section 72 (Further powers in relation to unsound meat);

PART X  
—cont.

Section 74 (Provision of public slaughter-houses and prohibition of private slaughter-houses thereafter);

Section 75 (Power to close slaughter-houses if injurious to public health);

Section 76 (Byelaws as to slaughter-houses);

Section 79 (Further provisions as to registration of common lodging-houses);

The Act of 1937—

Section 14 (As to evasion by owners of private street works expenses);

Section 38 (Power to establish information bureaux).

96. This Act shall be deemed to be an enactment passed before and in force at the passing of the Act of 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act. Saving for town and country planning.

97. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation. Costs of Act.



## SCHEDULE

Section 94.

## SECTIONS OF ACT OF 1936 APPLIED

## PART I

## SECTIONS APPLIED GENERALLY

| Section | Marginal note                                                     |
|---------|-------------------------------------------------------------------|
| 271     | Interpretation of "provide".                                      |
| 283     | Notices to be in writing; forms of notices, &c.                   |
| 286     | Proof of resolutions, &c.                                         |
| 288     | Penalty for obstructing execution of Act.                         |
| 296     | Summary proceedings for offences.                                 |
| 297     | Continuing offences and penalties.                                |
| 304     | Judges and justices not to be disqualified by liability to rates. |
| 328     | Powers of Act to be cumulative.                                   |
| 341     | Power to apply provisions of Act to Crown property.               |

## PART II

## SECTIONS APPLIED TO PARTS III, IV AND V OF THIS ACT

| Section | Marginal note                                                                                                   |
|---------|-----------------------------------------------------------------------------------------------------------------|
| 275     | Power of local authority to execute certain work on behalf of owners or occupiers.                              |
| 276     | Power of local authority to sell certain materials.                                                             |
| 277     | Power of councils to require information as to ownership of premises.                                           |
| 289     | Power to require occupier to permit works to be executed by owner.                                              |
| 291     | Certain expenses recoverable from owners to be a charge on the premises: Power to order payment by instalments. |
| 294     | Limitation of liability to certain owners.                                                                      |
| 295     | Power of local authority to grant charging orders.                                                              |
| 329     | Saving for certain provisions of the Land Charges Act, 1925.                                                    |

## PART III

SECTION APPLIED TO PARTS III, IV AND V AND  
SECTIONS 46 AND 53 OF THIS ACT

| Section | Marginal note            |
|---------|--------------------------|
| 287     | Power to enter premises. |



## PART IV

## SECTIONS APPLIED TO PARTS III AND IV OF THIS ACT

| Section | Marginal note                                   |
|---------|-------------------------------------------------|
| 293     | Recovery of expenses, &c.                       |
| 299     | Inclusion of several sums in one complaint, &c. |

*Table of Statutes referred to in this Act*

| Short title                                                 | Session and chapter            |
|-------------------------------------------------------------|--------------------------------|
| Theatres Act, 1843 ... ..                                   | 6 & 7 Vict. c. 68.             |
| Lands Clauses Consolidation Act, 1845 ...                   | 8 & 9 Vict. c. 18.             |
| Towns Improvement Clauses Act, 1847 ...                     | 10 & 11 Vict. c. 34.           |
| Town Police Clauses Act, 1847 ... ..                        | 10 & 11 Vict. c. 89.           |
| Public Health Act, 1875 ... ..                              | 38 & 39 Vict. c. 55.           |
| Telegraph Act, 1878 ... ..                                  | 41 & 42 Vict. c. 76.           |
| Electric Lighting Act, 1882 ... ..                          | 45 & 46 Vict. c. 56.           |
| Public Health Acts Amendment Act, 1890                      | 53 & 54 Vict. c. 59.           |
| Merchant Shipping Act, 1894 ... ..                          | 57 & 58 Vict. c. 60.           |
| Public Works Loans Act, 1897 ... ..                         | 60 & 61 Vict. c. 51.           |
| Small Dwellings Acquisition Act, 1899 ...                   | 62 & 63 Vict. c. 44.           |
| Open Spaces Act, 1906 ... ..                                | 6 Edw. 7 c. 30.                |
| Cinematograph Act, 1909 ... ..                              | 9 Edw. 7 c. 30.                |
| Ancient Monuments Consolidation and<br>Amendment Act, 1913  | 3 & 4 Geo. 5 c. 32.            |
| Poole Harbour Act, 1914 ... ..                              | 4 & 5 Geo. 5 c. clv.           |
| Poole Corporation Act, 1919 ... ..                          | 9 & 10 Geo. 5 c. xliv.         |
| Trustee Act, 1925 ... ..                                    | 15 Geo. 5 c. 12.               |
| Law of Property Act, 1925 ... ..                            | 15 Geo. 5 c. 20.               |
| Land Charges Act, 1925 ... ..                               | 15 & 16 Geo. 5 c. 22.          |
| Roads Improvement Act, 1925 ... ..                          | 15 & 16 Geo. 5 c. 68.          |
| Public Health Act, 1925 ... ..                              | 15 & 16 Geo. 5 c. 71.          |
| Rating and Valuation Act, 1925 ... ..                       | 15 & 16 Geo. 5 c. 90.          |
| Law of Property (Amendment) Act, 1926                       | 16 & 17 Geo. 5 c. 11.          |
| Petroleum (Consolidation) Act, 1928 ...                     | 18 & 19 Geo. 5 c. 32.          |
| Poole Corporation Act, 1928 ... ..                          | 18 & 19 Geo. 5 c. cxiv.        |
| Local Government Act, 1933 ... ..                           | 23 & 24 Geo. 5 c. 51.          |
| Public Health Act, 1936 ... ..                              | 26 Geo. 5 & 1 Edw. 8 c. 51.    |
| Physical Training and Recreation Act,<br>1937               | 1 Edw. 8 & 1 Geo. 6 c. 46.     |
| Local Government Superannuation Act,<br>1937                | 1 Edw. 8 & 1 Geo. 6 c. 68.     |
| Poole Corporation Act, 1937 ... ..                          | 1 Edw. 8 & 1 Geo. 6 c. cxviii. |
| Ministers of the Crown (Transfer of<br>Functions) Act, 1946 | 9 & 10 Geo. 6 c. 31.           |
| Borrowing (Control and Guarantees) Act,<br>1946             | 9 & 10 Geo. 6 c. 58.           |
| Town and Country Planning Act, 1947 ...                     | 10 & 11 Geo. 6 c. 51.          |
| Electricity Act, 1947 ... ..                                | 10 & 11 Geo. 6 c. 54.          |
| Local Government Act, 1948 ... ..                           | 11 & 12 Geo. 6 c. 26.          |
| Housing Act, 1949 ... ..                                    | 12 & 13 Geo. 6 c. 60.          |
| Civil Aviation Act, 1949 ... ..                             | 12 & 13 Geo. 6 c. 67.          |



| Short title                                           | Session and chapter               |
|-------------------------------------------------------|-----------------------------------|
| Diseases of Animals Act, 1950 ... ..                  | 14 Geo. 6 c. 36.                  |
| Public Utilities Street Works Act, 1950 ...           | 14 Geo. 6 c. 39.                  |
| Magistrates' Courts Act, 1952 ... ..                  | 15 & 16 Geo. 6 & 1 Eliz. 2 c. 55. |
| Cinematograph Act, 1952 ... ..                        | 15 & 16 Geo. 6 & 1 Eliz. 2 c. 68. |
| Food and Drugs Act, 1955 ... ..                       | 4 Eliz. 2 c. 16.                  |
| Housing Act, 1957 ... ..                              | 5 & 6 Eliz. 2 c. 56.              |
| Housing (Financial Provisions) Act, 1958              | 6 & 7 Eliz. 2 c. 42.              |
| Prevention of Fraud (Investments) Act,<br>1958        | 6 & 7 Eliz. 2 c. 45.              |
| Highways Act, 1959 ... ..                             | 7 & 8 Eliz. 2 c. 25.              |
| House Purchase and Housing Act, 1959                  | 7 & 8 Eliz. 2 c. 33.              |
| Town and Country Planning Act, 1959                   | 7 & 8 Eliz. 2 c. 53.              |
| Road Traffic Act, 1960 ... ..                         | 8 & 9 Eliz. 2 c. 16.              |
| Caravan Sites and Control of Development<br>Act, 1960 | 8 & 9 Eliz. 2 c. 62.              |
| Land Compensation Act, 1961 ... ..                    | 9 & 10 Eliz. 2 c. 33.             |

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR  
SIR JOHN ROUGHTON SIMPSON, C.B.

Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

Price 3s. 6d. net

PRINTED IN ENGLAND



# Poole Corporation Act, 1961

9 & 10 ELIZ. 2 Ch. xl

---

## ARRANGEMENT OF SECTIONS

### PART I

#### PRELIMINARY

##### Section

1. Citation.
2. Division of Act into Parts.
3. Incorporation of Lands Clauses Acts.
4. Interpretation.

### PART II

#### LANDS

5. Development of land.
6. Loans for erection, etc., of buildings.
7. Extension of power to acquire land by agreement.
8. Suspension of restrictive covenants.

### PART III

#### STREETS

##### *New streets*

9. Prohibition of building until street defined.
10. Prohibition of building until street formed and sewered.
11. Access to new street.
12. Rounding or splaying off corners at street junctions.

##### *Improvement of streets*

13. Trees, grass verges and gardens.
14. Enforcement of improvement line.



*Protection and repair of streets*

## Section

15. Amendment of section 36 of Act of 1928.
16. Retaining walls.
17. Awnings over footways.
18. Mixing of mortar, etc., in streets.

*Miscellaneous*

19. Decorations in streets.
20. Fencing and lighting of obstructions in highways.
21. Illumination of street names.
22. Numbers of houses.
23. Road cleansing vehicles.
24. Verges, etc., of housing estates.
25. Removal of trees, etc., from streets.
26. Sale of food and articles on verges, etc.
27. Interpretation of Part III.

## PART IV

## PUBLIC HEALTH

28. Provision of sanitary conveniences at places of public exhibition, etc.
29. Power to order alteration of domestic chimneys.
30. Supply of water to premises where supply cut off.
31. Caravans on certain lands.
32. Byelaws as to houseboats.
33. Discharge of steam and waste gas.
34. Restriction on use of dustbins.

## PART V

## FOOD

35. Interpretation of this Part of Act.
36. Slaughter of animals otherwise than for human consumption.
37. Byelaws as to sale, etc., of animal feeding meat.
38. Registration of premises used in connection with sale, etc., of animal feeding meat.



## PART VI

## MUNICIPAL PROPERTY, CEMETERIES, ETC.

## Section

- 39. Golf courses.
- 40. Provision of zoological and botanical gardens.
- 41. Agreements to maintain graves and tombstones.
- 42. Extension of power to maintain burial grounds.
- 43. Aerodrome undertaking.
- 44. Further provisions as to Sandbanks, etc.

## PART VII

## PUBLIC ORDER AND PUBLIC SAFETY

- 45. Notice of street processions.
- 46. Safety of stands.
- 47. Amendment of section 91 of Act of 1928.
- 48. Unauthorised structures on seashore.
- 49. Hackney carriages.
- 50. Precautions against fire in certain buildings.
- 51. Further provision for public and other buildings.
- 52. Amendment of sections 59 and 60 of Act of 1936.
- 53. Firemen's switches for luminous tube signs.
- 54. Underground car parks.
- 55. Further provision as to underground car parks.
- 56. Interpretation and powers of entry for purposes of last two foregoing sections.
- 57. Saving for Fire Services Acts and Factories Acts.

## PART VIII

## FINANCE, RATING AND SUPERANNUATION

- 58. Power to borrow.
- 59. Insurance fund.
- 60. Sea defence reserve fund.
- 61. Use of moneys derived from sale of corporate estate.
- 62. Establishment expenses.
- 63. Sheriff's allowances.
- 64. As to repayment of loans under Small Dwellings Acquisition Acts, 1899 to 1923.
- 65. Recovery of rates from tenants and lodgers.
- 66. Investment of superannuation fund.

## PART IX

## MISCELLANEOUS

- 67. Electronic or mechanical accounting equipment.
- 68. False statements to obtain rent rebate, etc.
- 69. Further powers as to libraries.



## Section

- 70. Recreational and other facilities for employees.
- 71. Maintenance of buildings of architectural interest.
- 72. Notice of variation of rent, etc.
- 73. Information centres.
- 74. Prizes for garden or allotment competitions.
- 75. Powers to use ladders, etc., for entry or inspection.
- 76. Robes of office.
- 77. Competitions, etc.
- 78. Disposal of lost and uncollected property.
- 79. Power to publish bulletins, etc.
- 80. Custody of ancient documents.
- 81. Corporation vehicles in processions.
- 82. Removal of vehicles.
- 83. Provision of yachting facilities.
- 84. Boundary of Poole Harbour.

## PART X

## GENERAL

- 85. Confirming authority for byelaws.
- 86. Local inquiries.
- 87. The appointed day.
- 88. Authentication of documents and service of notices.
- 89. Saving for trusts, etc.
- 90. For protection of certain statutory undertakers.
- 91. Restriction on right to prosecute.
- 92. Appeals.
- 93. Protection of members and officers of Corporation from personal liability.
- 94. Application of general provisions of Public Health Act, 1936.
- 95. Repeal.
- 96. Saving for town and country planning.
- 97. Costs of Act.

## SCHEDULE:

Sections of Act of 1936 applied—

Part I—Sections applied generally.

Part II—Sections applied to Parts III, IV and V of this Act.

Part III—Section applied to Parts III, IV and V and sections 46 and 53 of this Act.

Part IV—Sections applied to Parts III and IV of this Act.